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Combating Money Laundering in Bangladesh: Challenges, Legal Responses and the Way Forward

Course Title: Legal Research and Legal Monograph

Course code: 4347

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A Term Paper Submitted to the Department of Law under the Faculty of Law of the Northern University Bangladesh for the Degree of Bachelor of Laws (Honor's)

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Declaration

I, Majharul Islam hereby declare that the term paper entitled "Combating Money Laundering in Bangladesh: Challenges, Legal Responses and the Way Forward" is an independent academic work. I have prepared this work myself. It is submitted in fulfillment of the requirements for the degree of Bachelor of Laws (LL. B).

This term paper has been prepared under supervision. It has not been submitted, in whole or in part for any degree, diploma or academic qualification to any other university or institution. I have followed the OSCOLA referencing style. All sources, statutes, judicial decisions, reports and other materials used in this study have been properly. Credited.

I further declare that this work reflects my research, my own analysis and my own understanding of the legal and institutional framework related to money laundering, in Bangladesh. I have included the enforcement challenges and possible reform measures based on my study. Any help I received in preparing this term paper has been duly acknowledged.

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Certificate

This is to certify that the term paper entitled "Combating Money Laundering in Bangladesh: Challenges, Legal Responses and the Way Forward" submitted by Majharul Islam is a fide academic research work carried out under my supervision.

To the best of my knowledge this term paper is a work and has not been submitted, in whole or in part to any other university or institution for the award of any degree or certificate. The study demonstrates use of legal authorities academic sources and research materials while maintaining the principles of academic integrity.

I recommend this term paper for submission and evaluation in fulfillment of the requirements, for the degree of Bachelor of Laws (LL.B).

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Dedication

With the respect, love and gratitude I dedicate this term paper to my family. My family has given support, encouragement, patience and sacrifices. My family has always been a source of strength, during my academic journey.

I also dedicate this work to my teachers and mentors. Teachers and mentors have shared guidance, knowledge and encouragement. Teachers and mentors have inspired me to develop an understanding of law. Teachers and mentors have also driven me to conduct research on the challenges of fighting money laundering in Bangladesh.

Acknowledgement

I want to say thank you with all my heart to my supervisor. Supervisor gave me guidance constructive suggestions, insightful advice and continuous support while I prepared this term paper. Supervisors academic direction and critical feedback were very important in shaping the structure, analysis and overall quality of this study.

I am also grateful to all faculty members of the Department of Law. Department of Law gave me academic guidance, encouragement and support throughout my LL.B. Studies.

I want to extend appreciation to my family and friends. Family and friends gave encouragement, patience, understanding and moral support throughout this academic journey.

Finally, I acknowledge the contribution of legal authorities, academic books, journals, research papers, institutional reports and online legal resources. These sources helped me conduct this study on "Combating Money Laundering, in Bangladesh: Challenges, Legal Responses and the Way Forward."

List of abbreviations

AML- Anti-Money Laundering

ACC- Anti-Corruption Commission

BFIU- Bangladesh Financial Intelligence Unit

FATF- Financial Action Task Force

APG- Asia/Pacific Group on Money Laundering

MLPA- Money Laundering Prevention Act

KYC- Know Your Customer

STR- Suspicious Transaction Report

CTR- Cash Transaction Report

CID- Criminal Investigation Department

NBR- National Board of Revenue

MLA- Mutual Legal Assistance

CFT- Combating the Financing of Terrorism

DLR- Dhaka Law Reports

BLC- Bangladesh Law Chronicles

SCOB- Supreme Court Online Bulletin

AD- Appellate Division

HCD- High Court Division

List of cases

Md. Hafiz Ibrahim versus The State 15 SCOB (AD) [2021] 89. Bangladesh

Money laundering; ACCs power to investigate and start actions. The Appellate Division decided that the Anti-Corruption Commission had the power to investigate and start the process.

The State versus M Wahidul. Others, Criminal Revision (Suo Motu) No 246 of 2018 (HCD, 6 December 2018). Bangladesh

Money laundering; authority; trial; movement of money through banks. The case dealt with the movement of about 26.59 crore taka through export documents and accusations under the Money Laundering Prevention Act 2012.

Destiny Multi-Purpose Co-operative Society Ltd versus The State and Anti-Corruption Commission Criminal Appeal No 5815 of 2022 (HCD, 25 July 2024). Bangladesh.

Money laundering; seizing property; taking away assets; getting property. The High Court Division handled the seizure of immovable property of Destiny Multi-Purpose Co-operative Society Ltd and turned down the appeal.

Sultana Fahmida versus The State. Another, 18 SCOB [2023] HCD 56. Bangladesh

Money laundering; creating charges; investigation; corruption and related crimes. The case included accusations under sections 4(2) and 4(3) of the Money Laundering Prevention Act 2012 well as under the Penal Code and corruption charges.

18 SCOB [2023] HCD 54. Bangladesh.

Money laundering; export documents; illegal use of trust; corruption. The case was about taking 26.59 crore taka against 17 export documents and legal actions under sections 4(2) and 4(3) of the Money Laundering Prevention Act 2012.

Ferdous Jobayet Islam Bhuiya versus The State. Another, Criminal Appeal No 9565 of 2022 (HCD, 15 May 2024). Bangladesh

Money laundering; appeal under section 22 of the Money Laundering Prevention Act 2012. The appeal was against a decision made by the Special Sessions Judge in a money-laundering case.

Begum Khaleda Zia and others versus The State and another 20 SCOB [2025] AD. Bangladesh

Money laundering; corruption; section 22 of the Money Laundering Prevention Act 2012; appeal and review authority. The Supreme Courts Appellate Division dealt with issues involving section 22 of the MLPA along, with corruption-related charges.

Abstract

Money laundering is a crime that crosses borders and hurts economic stability, financial honesty, good governance and the rule of law. Bangladesh has made a legal and institutional plan to fight money laundering. The main tool is the Money Laundering Prevention Act of 2012. Other laws and rules also support this effort. The Bangladesh Financial Intelligence Unit, Bangladesh Bank, Anti-Corruption Commission, police and other groups all help stop, find, look into and bring money laundering cases to court. Still Bangladesh keeps having problems with enforcement. Money laundering problems show up in financial investigations weak teamwork between agencies slow prosecutions, trouble tracing and taking back assets lack of help from other countries and new technology crimes.

This paper looks closely at what money laundering means why it happens and new patterns that are coming up. It also looks at Bangladesh's laws and groups that fight money laundering. The paper also checks real enforcement problems, court actions and how Bangladesh follows rules, especially the advice from the Financial Action Task Force. The style of the paper is mainly legal and thoughtful. The writer uses laws, official documents, global rules, reports and court decisions. In the end the paper suggests laws, better teamwork, stronger investigations, faster prosecutions, better ways to recover assets, more technology and more help from other countries. The research says Bangladesh has done a lot to set up an AML system. It needs to focus more on making it work well and on teamwork between groups to get a stronger and lasting fight against money laundering.

The paper uses a legal and analytical style. It relies on laws, official documents, worldwide rules, reports and court decisions. Then it suggests laws, better teamwork, stronger investigations quicker prosecutions, better ways to recover assets, more technology and more help from other countries. The study says Bangladesh has done a lot to build an AML system. It needs to focus more on making the system work well and on teamwork between groups to give a stronger and lasting fight, against money laundering.

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Chapter 1: Introduction and Research Methodology

1.1 Background of the Study

Money laundering is one of the forms of financial crime in the modern world. It generally refers to the process through which money or property obtained from activities is concealed, transferred, converted or otherwise dealt with in a way that makes its illegal origin difficult to identify. Criminal activities such as corruption, fraud, drug trafficking, smuggling, human trafficking and other serious offences may generate proceeds that criminals attempt to introduce into the economy.[1]

The problem of money laundering is not limited to the financial loss caused by the underlying crime. It can also affect the economy and financial system. When illegally obtained money enters businesses or financial institutions it may create unfair competition weaken confidence in financial institutions and contribute to other forms of organized crime. For this reason preventing money laundering has become a concern for governments, financial institutions and law enforcement agencies.

The nature of money laundering has also changed with the development of technology and international financial systems. Criminals can now use bank transfers, mobile financial services, online platforms, shell companies and transactions across jurisdictions to move and conceal illicit funds. As a result identifying the source of money has become increasingly difficult in some cases. The international nature of these transactions also means that one countrys authorities may require assistance from another country to investigate activities or recover criminal assets.

At the level the Financial Action Task Force (FATF) has developed internationally recognised standards for combating money laundering, terrorist financing and the financing of proliferation. The FATF Recommendations cover areas such as risk assessment, customer due diligence, beneficial ownership, suspicious transactions, financial intelligence, investigation, confiscation and international cooperation.[2] These standards provide a basis for countries seeking to develop effective anti-money laundering systems.

Bangladesh has taken a number of institutional measures to address money laundering. The Money Laundering Prevention Act 2012 (MLPA) is the legislation dealing with money laundering in Bangladesh. The Act defines money laundering. Identifies different activities that may constitute the offence. It also provides provisions relating to investigation, prosecution, freezing and confiscation of property connected with money laundering.[3]

The statutory framework is supported by the Money Laundering Prevention Rules 2019 which provide provisions for implementing the anti-money laundering framework.[4] Other legislation, including the Anti-Terrorism Act 2009 and the Mutual Legal Assistance in Criminal Matters Act 2012 also has relevance to the broader system for combating financial crime and obtaining cooperation in criminal matters.

Alongside legislation Bangladesh has established institutions with responsibilities in preventing and

[1] *Money Laundering Prevention Act 2012* (Bangladesh) s 2.
[2] Financial Action Task Force, *The FATF Recommendations: International Standards on Combating Money Laundering and the Financing of Terrorism & Proliferation* (FATF 2023).
[3] *Money Laundering Prevention Act 2012* (Bangladesh) ss 2, 4, 8–10.
[4] *Money Laundering Prevention Rules 2019* (Bangladesh).

detecting financial crime. The Bangladesh Financial Intelligence Unit (BFIU) has a role in this system. It receives and analyses information, including suspicious transaction and suspicious activity reports and disseminates relevant financial intelligence to competent authorities.[5] Other bodies, including the Anti-Corruption Commission (ACC) Criminal Investigation Department (CID) National Board of Revenue (NBR) Customs authorities and Bangladesh Securities and Exchange Commission (BSEC) also have responsibilities connected with the prevention and enforcement of financial crimes.

Although Bangladesh has developed a legal and institutional framework, the existence of laws and institutions does not by itself guarantee effective enforcement. The Asia/Pacific Group on Money Laundering (APG) in its Mutual Evaluation Report on Bangladesh recognized the countries progress in developing its AML/CFT framework while also identifying weaknesses relating to areas such as intelligence, investigation, prosecution and confiscation.[6]

Another important issue is the recovery of criminal assets. The purpose of combating money laundering is not to punish offenders but also to prevent criminals from benefiting from the proceeds of crime. Effective tracing, freezing, confiscation and recovery of assets are therefore important parts of an effective AML system. Recent BFIU reporting also demonstrates the importance of asset tracing, attachment, recovery and mutual legal assistance in dealing with money laundering cases.[7]

These developments show that the issue of money laundering in Bangladesh should not be examined from the perspective of legislation. It is also necessary to consider how the existing laws operate in practice what difficulties enforcement agencies face and whether the present system is capable of responding to changing forms of crime.

Therefore this research examines Bangladesh's institutional response to money laundering the practical challenges affecting enforcement and the possible measures that may strengthen the countries overall anti-money laundering framework.

1.2 Statement of the Problem

Money laundering presents a challenge to the effective administration of criminal justice and financial regulation in Bangladesh. Criminals may attempt to hide the proceeds of activities through complicated financial transactions, businesses, property purchases and transfers between different accounts or jurisdictions. Such activities can make it difficult for investigators to identify the source of funds and establish the connection between criminal activity and the assets involved.

Bangladesh has introduced legislation. Established institutions to address these problems. However there can be a difference between the provisions contained in legislation and their practical implementation. A strong legal provision may have limited effect if investigators lack the resources, expertise or access to financial information.

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[5] Bangladesh Financial Intelligence Unit, *Annual Report 2024–2025* (BFIU 2025).

[6] Asia/Pacific Group on Money Laundering, *Anti-money Laundering and Counter-Terrorist Financing Measures in Bangladesh: Mutual Evaluation Report* (APG 2016).

[7] Bangladesh Financial Intelligence Unit, *Annual Report 2024–2025* (BFIU 2025).

One of the challenges is the investigation of complex financial transactions. Money laundering investigations often require investigators to examine bank records, financial statements, company structures, property ownership and transactions involving individuals or institutions. In some cases identifying the owner of property or a company can also be difficult.[8]

Coordination between different government agencies is another important issue. Information relevant to a money laundering investigation may be held by institutions. Financial institutions, tax authorities, law enforcement agencies and regulatory bodies may each possess parts of the information required to establish a case. Effective cooperation and timely information sharing are therefore necessary for investigations.

The prosecution of money laundering cases can also be difficult because financial crimes often involve documentary and electronic evidence. Investigators and prosecutors may need to establish the connection between the criminal activity the proceeds generated from that activity and the subsequent transactions used to conceal or transfer those proceeds.

Asset recovery is another problem. Where criminal proceeds are identified authorities may face difficulties in tracing, freezing and confiscating those assets. The problem becomes more complicated when assets are transferred outside Bangladesh. In circumstances domestic authorities may need assistance from foreign jurisdictions to obtain evidence or recover property.

The effective use of intelligence is also important. BFIU. Analyses financial information from reporting organizations and provides relevant intelligence to competent authorities. However the value of intelligence ultimately depends on whether it is properly used during investigation and prosecution.[9]

The central problem addressed by this study is therefore the gap between Bangladesh's formal legal framework and its practical effectiveness in combating money laundering. The research seeks to identify the reasons behind this gap and to consider how legal institutional and practical measures can be improved.

1.3 Literature Review

Money laundering has received considerable attention from international organisations, governments, researchers and legal scholars. Existing literature generally focuses on the nature of money laundering the methods used to conceal proceeds the development of anti-money laundering laws and the role of financial institutions and law enforcement agencies.

In the context of Bangladesh, the Money Laundering Prevention Act 2012 is the important primary legal source. The Act provides the basis for defining and dealing with money laundering offences. It also contains provisions relating to investigation, prosecution and measures against property connected with money.[10] An examination of this legislation is therefore essential for understanding the foundation of Bangladesh's AML framework.

The Money Laundering Prevention Rules 2019 provide support to the statutory framework. These

[8] Asia/Pacific Group on Money Laundering (n 6).
[9] Bangladesh Financial Intelligence Unit (n 5).
[10] *Money Laundering Prevention Act 2012* (Bangladesh) ss 2, 4, 8–10.

Rules are relevant for understanding the implementation of the institutional arrangements created to prevent money laundering.[11]

The publications of the Bangladesh Financial Intelligence Unit provide another important source of information. BFIU annual reports discuss intelligence, suspicious transaction reporting, supervision, reporting organizations, inter-agency cooperation and other AML-related activities. The BFIU Annual Report 2024–2025 is particularly useful for understanding developments in Bangladeshs AML/CFT system.[12]

The APG Mutual Evaluation Report on Bangladesh 2016 is also significant because it provides an external assessment of Bangladesh's AML/CFT framework. The report examined both compliance and practical effectiveness and identified areas where further improvement was required, including investigation, prosecution, financial intelligence and confiscation.[13]

At the international level the FATF Recommendations provide a widely accepted framework for evaluating anti-money laundering systems. They address issues including risk assessment, preventive measures, beneficial ownership, suspicious transaction reporting, financial intelligence, law enforcement, confiscation and international cooperation.[14]

The existing literature and institutional reports provide information about Bangladesh's laws and institutions. However there is still a need to examine the relationship between the framework and its practical implementation. A law may provide powers on paper but its effectiveness depends on the ability of relevant authorities to use those powers properly.

This study therefore attempts to bring the legal, institutional and practical aspects of money laundering in Bangladesh. It focuses not on what the law provides but also on the challenges that may prevent the law from producing effective results.

1.4 Objectives of the Study

The main objective of this study is to examine the institutional framework for combating money laundering in Bangladesh and to identify the major challenges affecting its effective implementation.

The specific objectives are:

I. To explain the concept and nature of money laundering.

II. To examine the causes and methods of money laundering and its impact on Bangladesh.

III. To analyze the provisions of the Money Laundering Prevention Act 2012 and the Money Laundering Prevention Rules 2019.

IV. To examine the roles and responsibilities of institutions involved in preventing and combating money laundering in Bangladesh.

[11] *Money Laundering Prevention Rules 2019* (Bangladesh).
[12] Bangladesh Financial Intelligence Unit (n 5).
[13] Asia/Pacific Group on Money Laundering (n 6).
[14] Financial Action Task Force (n 2).

V. To identify the legal, institutional and practical challenges faced by enforcement authorities.

VI. To examine the role of intelligence and suspicious transaction reporting in detecting money laundering.

VII. To examine the difficulties relating to tracing, freezing, confiscating and recovering assets.

VIII. To assess Bangladesh's AML framework in light of international standards, particularly the FATF Recommendations.

IX. To suggest legal and institutional reforms for improving the effectiveness of Bangladeshs response, to money laundering.

1.5 Research Questions

1. What is money laundering. Why is it a big problem for Bangladesh?
2. What are the main laws that deal with money laundering in Bangladesh?
3. What groups are in charge of stopping looking into and fighting money laundering?
4. How good is the Money Laundering Prevention Act 2012 at handling money laundering crimes?
5. What are the main problems that the people who enforce the laws face when they look into and take action against money laundering?
6. How well are financial intelligence and reports of transactions used when looking into money laundering?
7. What problems are there when trying to follow freeze, take away and get back money?
8. How much does Bangladesh's anti-money laundering system match the rules that other countries follow?
9. What kinds of changes in laws organizations and real-life actions could make Bangladeshs anti-money laundering system better?

1.6 Significance of the Study

I believe the study of money laundering is important because the consequences of this offence can reach beyond the single criminal act that starts the money. When illegal money moves into the economy it can hurt businesses, banks and the public's trust in the financial system.

This research is significant because it looks at Bangladesh's response to money laundering from both practical angles. It reviews the laws that have been put in place and the challenges that can appear when those laws are used in life.

The study can be useful for law students, researchers, academics and legal professionals who care

about crime and criminal law. It can also help policymakers and government officials who work in regulation, investigations and prosecutions.

The research is also important because effective AML enforcement needs teamwork among institutions. The BFIU, police, regulators and other government bodies each have their duties. Knowing how these duties connect helps spot gaps in the system.

Also the global nature of today's transactions means that international cooperation is more vital than ever. Criminal money can be moved from one country to another so one nation alone cannot easily investigate or recover the assets without help from places.[15]

Finally the findings of this study could add to the wider conversation about making Bangladesh's legal and institutional framework stronger for fighting money laundering and boosting its compliance, with international AML/CFT standards.

1.7 Scope of the Study

This study looks mainly at the institutional and practical parts of fighting money laundering in Bangladesh.

The main legal focus is on the Money Laundering Prevention Act 2012 and the Money Laundering Prevention Rules 2019. Other relevant laws are looked at when they have a link to money laundering prevention, investigation, prosecution or international cooperation.

The institutional scope covers the Bangladesh Financial Intelligence Unit, Anti-Corruption Commission, Criminal Investigation Department, National Board of Revenue Customs authorities and other relevant regulatory and enforcement bodies.

The study looks at practical issues, such as investigation, prosecution, suspicious transaction reporting, financial intelligence, inter-agency cooperation, asset tracing, freezing, confiscation, asset recovery and cross-border money laundering.

The research also looks at standards, especially the FATF Recommendations and the assessments of Bangladesh by the Asia/Pacific Group on Money Laundering. These materials are used to check the strengths and weaknesses of Bangladesh's AML framework.

The study does not try to look at every type of crime, in Bangladesh. Terrorist financing is mentioned only when it matters to the AML/CFT framework. Likewise the research does not give an analysis of every part of Bangladesh's criminal justice system.

[15] Financial Action Task Force (n 2).

1.8 Research Methodology

1.8.1 Research Approach

In this study I am following an doctrinal legal research approach. The study mainly examines existing laws, regulations, judicial materials, institutional reports and international standards about money laundering.

The study is doctrinal because it focuses on identifying and analyzing rules and principles. At the time the study takes an analytical approach by considering how the legal framework operates in practice and what problems may affect its effectiveness.

This approach is appropriate for the study because the study aims to understand both the legal provisions and the practical challenges associated with their implementation.

1.8.2 Sources of Data

The primary sources include:

- Money Laundering Prevention Act 2012;
- Money Laundering Prevention Rules 2019;
- Anti-Terrorism Act 2009;
- Mutual Legal Assistance in Criminal Matters Act 2012;
- judicial decisions; and
- other relevant legislation and regulations.

The secondary sources include:

- annual reports;
- APG reports;
- FATF Recommendations;
- academic books;
- journal articles;
- institutional publications; and
- relevant research materials.

Official publications of BFIU and APG are particularly useful because they provide information,

about the operation and effectiveness of Bangladesh's AML/CFT framework.[16]

1.8.3 Method of Analysis

The collected materials are analyzed through interpretation, comparison and critical evaluation.

First the relevant provisions of legislation are examined to understand the legal basis of Bangladesh's AML framework.

Second the roles and responsibilities of institutions are considered to understand how the legal framework is implemented.

Third practical challenges relating to investigation, prosecution, financial intelligence, asset recovery and international cooperation are examined.

Finally Bangladesh's framework is considered in light of standards particularly the FATF Recommendations and relevant APG assessments. This helps identify areas in which Bangladesh has made progress and areas where further improvement may be necessary.

1.9 Limitations of the Study

First money laundering is generally a form of criminal activity. Because it is hidden it is hard to know the exact amount of money being moved through Bangladesh or sent out of the country.

Second information about investigations, confidential financial intelligence and certain criminal cases is not made public. As a result this research depends mostly on available laws official reports from institutions, court decisions and academic writings.

Third anti-money laundering laws, rules and international guidelines can change over time. This means that the legal and institutional situation in Bangladesh may keep changing after this study is finished.

Fourth the study mainly uses an doctrinal approach. It does not include interviews or surveys with people like investigators, prosecutors, judges, financial intelligence officers or representatives from reporting organizations. That means the research focuses more on institutional analysis than on real-world field-based data.

With these limitations using primary legislation official reports from institutions, international standards and other trustworthy sources gives a solid foundation for looking at the main issues related to money laundering, in Bangladesh.

[16] Bangladesh Financial Intelligence Unit (n 5); Asia/Pacific Group on Money Laundering (n 6).

1.10 Organization of the Study

The research is divided into **six chapters**. Each chapter deals with a particular aspect of the overall research topic.

Chapter One: Introduction and Research Methodology provides an introduction to the study. It discusses the background of money laundering, statement of the problem, literature review, objectives, research questions, significance, scope, research methodology and limitations of the research.

Chapter Two: Money Laundering: Concepts, Causes and Emerging Trends focuses on the basic concepts and nature of money laundering. It discusses the meaning of money laundering, its different stages, causes, methods and emerging trends. The chapter also considers the broader effects of money laundering.

Chapter Three: Enforcement Challenges and Practical Limitations examines the challenges faced in enforcing the legal framework relating to money laundering. It focuses on practical problems that may arise during investigation, prosecution and enforcement of AML laws.

Chapter Four: Enforcement Challenges and Practical Limitations further examines the practical limitations associated with combating money laundering. It discusses issues such as financial intelligence, inter-agency coordination, asset tracing and recovery, cross-border transactions, technological risks and other enforcement-related difficulties.

Chapter Five: Judicial Responses, International Standards and Reform Measures examines judicial responses to money laundering and considers the relevance of international AML standards. It also evaluates possible legal and institutional reforms that may strengthen Bangladesh's response to money laundering.

Chapter Six: Conclusion summarizes the major findings of the research and provides the overall conclusion of the study. It also brings together the major issues discussed in the previous chapters and presents the overall direction for improving Bangladesh's AML framework.

Chapter 2: Money Laundering: Concepts, Causes and Emerging Trends

2.1 Concept and Definition of Money Laundering

Money laundering is usually seen as the way that money or property from activities is hidden, moved or changed so it looks like it came from a legal source. The main goal is not just to take money from one place to another but to cover up where it came from. This makes it possible for the person involved to use the money without getting caught by the police. Money laundering is therefore linked to crime, corruption, fraud, drug dealing, human trafficking, smuggling and other activities that make money illegally.[17]

The idea of money laundering has both a side and a practical side. From the side the crime is about actions meant to hide or change the nature, source, location, ownership or control of money from a crime. From the side it is a process where criminals try to break away from the original illegal activity and look like they have legal money. This is why money laundering is different from the crime that made the money. The first crime creates the cash while laundering tries to hide the link between the money and the crime.[18]

In Bangladesh the Money Laundering Prevention Act 2012 is the law for defining and dealing with money laundering. The law includes things like hiding or changing the nature, source, location, ownership or control of money from a crime helping someone involved in a crime avoid punishment moving money to or from another country to hide where it came from and doing financial transactions to avoid reporting rules.[19]

The definition in Bangladeshi law is quite wide. It does not cover moving physical money. It includes types of hiding moving, changing and transferring property. This is important because todays methods of money laundering often involve bank transactions, company structures, trade deals, electronic money transfers and international financial plans.

Money laundering is also different from financial activities. Moving money investing money or transferring property is not in itself illegal. The crime happens when the transaction is connected to money from a crime along, with the intent or situation set by law. So knowing where the money came from and why the transaction happened is very important when checking if a financial activity is money laundering.

2.2 Nature and Characteristics of Money Laundering

Money laundering is an changing type of financial crime. It doesn't always happen through one action. It can involve different actions, people, companies, bank accounts and countries. The ways criminals use also change based on things in financial services, technology and how police work.

One big thing about money laundering is hiding. People who do it try to cover up the link between actions and the money made from those actions. The harder it is to see that link the harder it is for

[17] Financial Action Task Force (FATF), *The FATF Recommendations: International Standards on Combating Money Laundering and the Financing of Terrorism & Proliferation* (FATF, updated June 2026).
[18] United Nations Office on Drugs and Crime (UNODC), *Reference Guide to Anti-Money Laundering and Combating the Financing of Terrorism* (UNODC).
[19] *Money Laundering Prevention Act 2012* (Bangladesh), s 2.

people trying to find out where the money came from.

Another thing is that it's complicated. People who launder money might use accounts, companies, middlemen and actions to make it hard to understand where the money is going. Sometimes real business deals are used to hide the flow of cash. Fake companies, people who act on behalf of others and tricky ownership setups can make it hard to find out who really controls the money.[20]

Another thing is that it happens across borders. Money can be made in one country moved through banks in another and then put into a third. This makes it hard for investigators because the proof, money records and assets might be in places, with different rules.

Money laundering also changes a lot. When banks and financial companies get better at checking for behavior criminals might go to other ways. When using cash becomes too risky criminals might use trade deals, digital payments, online services or digital money. New financial technologies have made both chances and new dangers for bad behavior.

Finally money laundering is often part of money-focused crime. Criminal groups need ways to keep and use the money they make from things. Good laundering lets these groups use the money again fund more crimes and get more power.

2.3 Stages of Money Laundering

Money laundering can happen in ways but it is usually described using three main stages: placement, layering and integration. These stages help explain how illegal money is moved through the system. However in life the stages may not always happen in order and can overlap.[21]

2.3.1 Placement

Placement is the step. This is when money obtained through crime is brought into the financial system. Criminals often get amounts of cash from illegal activities like drug dealing, corruption, smuggling or fraud. Because big amounts of cash can attract attention they try to get the money into banks, businesses or other financial channels.

For example criminals might use a cash- business to deposit the money, open bank accounts buy valuable property or turn the cash into financial products. The main goal here is to get the money out of the hands of the original criminal and into a system where it can be handled more easily.[22]

This stage is especially important because the money is still close to the activity. Once it moves into a network of transactions it becomes much harder to trace back to its source.

2.3.2 Layering

Layering is the stage. It involves creating a pattern of financial transactions to hide the origin of the money. The purpose is to confuse investigators and make it difficult to follow the money trail.

[20] United Nations Office on Drugs and Crime, *United Nations Convention against Corruption: Technical Guide* (UNODC 2009).
[21] UNODC, *Reference Guide to Anti-Money Laundering and Combating the Financing of Terrorism* (n 2).
[22] FATF, 'Frequently Asked Questions' (FATF) (explaining the placement stage of money laundering).

In this stage the money might be moved between bank accounts turned into different kinds of assets sent across countries or used in transactions that look completely legal. Criminals might also use shell companies, middlemen or complex ownership setups to hide who really owns the money.[23]

With the rise of banking and fast electronic transfers layering can involve moving funds across many countries in a short time. This makes it even harder for law enforcement to track.

2.3.3 Integration

Integration is the stage. At this point the criminal money is brought back into the economy in a way that looks clean and legitimate. The money may be used to buy estate start businesses buy luxury items or invest in other assets.

The goal is for the criminal to use the money without raising suspicion. For example the money might seem like business profits, money from selling property or returns from an investment.

The three-stage model gives a picture of how money laundering works.. It should not be seen as a strict rule. In cases the stages can overlap and some schemes might only use parts of the model. That's why organizations like the FATF and others see money laundering, as a process that includes many ways of hiding the illegal source of funds.

2.4 Causes and Motivations of Money Laundering

The primary motivation behind money laundering is the desire to enjoy the benefits of proceeds without exposing their illegal origin. Criminal activity often generates profits but simply possessing or spending those profits can create evidence linking the individual to the underlying offence. Laundering provides a way of reducing this risk.

One major cause is profit-driven crime. Criminal groups involved in drug trafficking, human trafficking, smuggling, fraud and corruption generate amounts of illegal income. Such groups need to move and store their profits in ways that reduce the possibility of detection.

Corruption is another source and motivation. Bribes, embezzled funds and other forms of corrupt income may be concealed through bank accounts, property purchases, companies or overseas transfers. Money laundering can therefore help corrupt individuals hide the benefits of their misconduct.

Tax-related offences and financial fraud can also generate funds that may subsequently require concealment. Where individuals obtain money through financial statements, fraudulent transactions, tax evasion or other illegal activities laundering may be used to disguise the resulting proceeds.

A further motivation is the desire to reinvest proceeds. Money laundering does not always involve hiding money. Criminals may use laundered funds to purchase businesses, property or other assets thereby increasing their power and potentially supporting further criminal activities.

Weak institutional controls can also create conditions for laundering. Criminals are more likely to exploit systems where customer identification, beneficial ownership transparency transaction

[23] UNODC, *United Nations Convention against Corruption: Technical Guide* (n 4).

monitoring and enforcement mechanisms are weak. International AML standards therefore emphasise risk assessment, customer diligence, suspicious transaction reporting and cooperation, between competent authorities.

2.5 Predicate Offences and Sources of Illicit Funds

Money laundering is closely tied to predicate offences. A predicate offence is the act that creates the money or property later used in money laundering. Without a source of proceeds the idea of money laundering would not exist.

Bangladesh follows the Money Laundering Prevention Act 2012 which lists predicate offences. These cover corruption and bribery, fraud, forgery, illegal drug trade, theft, robbery, kidnapping, trafficking of women and children black marketing, currency smuggling, human trafficking, customs and tax crimes, terrorism and terrorist finance, environmental crimes, sexual exploitation organized crime and racketeering. More. The Act also allows new offences to become offences through a legal process.

This wide approach matters because money laundering can stem from kinds of crime. Criminal proceeds can come from new criminal acts. For instance money can come from corruption or drug trafficking or from financial fraud or online crime.

In Bangladesh the large list of predicate offences shows that money laundering can come from parts of the economy. It also shows why anti-money laundering enforcement cannot rely on banks. Good prevention needs teamwork among intelligence agencies, police, tax officials, customs officers and other relevant bodies.

Finding the predicate offence is very important, in an investigation because tracing the source of the money lets investigators prove that the proceeds are criminal. At the time money laundering can become hard when the original crime happened outside Bangladesh or when the money moved through many countries before coming to Bangladesh.

2.6 Effects of Money Laundering

Money laundering has effects that go beyond the people who are directly involved in criminal behavior. These effects can impact the economy, financial institutions, public administration, investment and the overall rule of law.

First money laundering can make organized crime stronger. When criminal groups manage to turn their earnings into clean money they grow more powerful. This laundered money can then be used to fund crimes hire more members and grow their networks.

Second money laundering can support corruption. Weaken institutions. If criminals hide their profits successfully the rewards from corrupt acts remain intact. This may encourage wrongdoing and lower trust in government bodies and public services.

Third money laundering can harm economic stability. Large flows of money can disturb normal business activity and give unfair advantages to companies tied to criminal operations. The World Bank has said that illicit financial flows and corruption can damage development efforts, weaken

institutions and take resources away from uses like education and health care.[24]

Money laundering can reduce government income and slow down progress. When illegal money is linked to tax evasion, corruption or illegal trade the government loses taxes and fees it could use for needs such as schools, hospitals and roads.[25]

Another big consequence is the damage done to the reputation and honesty of the sector. If banks and financial firms are seen as places where criminal money is hidden people may lose trust in the system. International financial organizations might also watch transactions from areas, with high anti-money laundering risks closely.

Finally money laundering seriously affects the rule of law. A court may convict a person for a crime. If the criminal still keeps the money earned from that crime the punishment is not complete. That's why tracking, freezing and seizing gains have become key parts of modern anti-money laundering systems.

2.7 Emerging Trends and Techniques

Money laundering methods have changed a lot because of advances in finance, international trade and digital technology. While older methods are still used criminals now often mix them with tools and complicated financial setups.

One growing method is the use of companies and shell companies. These can be set up to mix income with illegal money. They also help give explanations for transactions that look suspicious. Complex company structures can hide who really owns the business making it hard to find the person behind the money.

Another method is trade-based money laundering. Criminals can disguise funds by using fake invoices or by over-invoicing or under-invoicing goods in international trade. They might also mislabel what is being shipped. Because international trade involves people, different currencies and different countries it's hard to spot these kinds of fraud.

The real estate market is also a target. Criminals may use money to buy land, apartments or office buildings. Once they own the property renting it out or selling it later can make the money look like it came from a source.

Using intermediaries also makes the whole process harder to track. Lawyers, accountants, company formation agents and other professionals can sometimes help set up companies manage assets or move money. This can happen even if they don't know what's going on. That's why knowing who really owns a company and keeping professionals alert are parts of anti-money laundering efforts.

Technology has made things worse for law enforcement. Internet banking, digital payment systems, online platforms and virtual assets, like cryptocurrencies let money move fast across borders. The Financial Action Task Force or FATF has pointed out that criminals take advantage of technologies and areas where rules are weak. They use these gaps to hide and shift money.

[24] World Bank, *Ill-Gotten Money and the Economy: Experiences from Malawi and Namibia* (World Bank 2011).
[25] World Bank, 'Financial Integrity & Stability' (World Bank).

So money laundering is not a one-size-fits-all crime. It keeps changing. As banks and financial firms get better at detecting activity criminals shift to new methods and less controlled areas. To keep up anti-money laundering work must stay active. It requires watching for patterns and staying aware of what new technologies are being used. AML efforts need to be flexible and constantly updated.

2.8 Money Laundering Through Digital and Virtual Assets

The growth of financial services has opened up new chances for real economic activity but it has also brought new risks of money laundering. Digital payment systems, online platforms and virtual assets can move value quickly across borders making it hard for old monitoring systems to keep up.

Virtual assets, which are often linked to crypto-assets are versions of value that can be sent or traded over the internet. FATF notes that virtual assets can give financial and tech advantages but they can also be used for money laundering and terrorist financing.

A big worry is how fast virtual assets can move. Transactions can happen in countries without using normal banks. Some virtual asset activity uses unposted wallets, peer-to-peer transfers, offshore service providers or decentralized arrangements which makes it harder to find and watch them.

Criminals might use assets to collect money from fraud, ransomware, cybercrime or other crimes and then try to turn those assets into regular money or other property. FATF has pointed out risks in stablecoins, peer-to-peer transactions, unposted wallets, offshore virtual asset service providers and decentralized finance arrangements.[26]

At the time it would not be right to say that virtual assets are always criminal. Blockchain transactions can leave records that help investigators track them. The real risk depends on how the technology, service providers and related financial systems used and supervised.

Because of this international rules are paying attention to virtual asset service providers (VASPs). FATF wants countries to look at the risks of assets, control or watch the service providers that deal with them and use rules, like customer checks keeping records and reporting suspicious trades.[27]

For Bangladesh the growing use of financial services makes this problem especially important. New technology means that AML authorities must be able to understand trades, track assets and work with foreign authorities when trades cross borders. The real challenge is not just to control the technology but to make sure that laws and institutions can deal with kinds of financial crime.

[26] FATF, *Seventh Targeted Update on Implementation of the FATF Standards on Virtual Assets/VASPs* (FATF, 16 July 2026).
[27] FATF, *Updated Guidance for a Risk-Based Approach to Virtual Assets and Virtual Asset Service Providers* (FATF 2021).

2.9 International Dimension of Money Laundering

Money laundering is not limited by country borders. Illegal money can move between areas quickly which makes working with other countries very important for stopping this kind of crime.

The global part is especially important when money is being hidden. People who do things might move money through countries that have different banking systems, rules and levels of control. When it is hard to get information from another country investigators might struggle to find where the money came from, where it is going and who really owns it. FATF says that money laundering can happen anywhere and that bad people look for places where they are less likely to be caught.

Because of this international groups have created shared rules to stop money laundering. The Financial Action Task Force (FATF) is very important because it sets rules for stopping money laundering and terrorist financing. Its guidelines offer a plan that includes things like looking at risks making money laundering a crime taking away money checking who customers are finding who really owns the money reporting strange transactions controlling banks and working with other countries.

The United Nations also gives a legal base through international rules that deal with organized crime, corruption and similar crimes. These rules ask countries to make certain behaviors illegal work together in investigations find and take away money from crime and help each other legally.

For Bangladesh working with countries is very important because the country is part of a growing network of financial and business activities. Money can go out of the country through banks, trade deals, money transfers or other ways. So just doing things inside the country is not enough to stop every part of a crime that moves across borders.

Working with countries can include sharing financial information helping each other legally finding and stopping money sending people back to their countries and sharing details between the right people. Bangladesh's laws also have the Mutual Legal Assistance in Criminal Matters Act 2012 and other ways to work with countries.[28]

The global part also shows why Bangladesh's rules for stopping money laundering should not be seen alone. Following the worlds rules for stopping money laundering is important not to stop bad things from happening but also to keep trust in the countries financial system and its economic relationships, with other countries.

2.10 Conclusion

Money laundering is a financial crime. It lets criminals hide where their illegal money comes from. They then make it look like the money came from sources. The usual way people explain this process includes three steps: placement, layering and integration.. In real life these steps don’t always happen in order.

The reason money laundering exists is tied to profit-driven crimes. These include corruption, fraud, drug trafficking, smuggling, human trafficking, tax evasion and organized crime. In Bangladesh the Money Laundering Prevention Act 2012 lists many of these as offences.

[28] *Mutual Legal Assistance in Criminal Matters Act 2012* (Bangladesh).

Money laundering doesn't just cause damage. It also helps organized crime grow. It encourages corruption. It weakens banks and other financial institutions. It lowers government income through lost taxes.. It reduces trust in laws and justice systems. The problem has gotten harder because of digital finance, online payments and virtual assets like cryptocurrencies.

Because money laundering today often crosses borders Bangladesh cannot solve it alone with rules. It needs help from countries. Working with authorities and following global anti-money laundering standards are now essential. These efforts help track stolen money freeze accounts and get back gotten gains.

In short money laundering is not a fixed crime. Its methods keep changing as finance, technology and trade evolve. To fully understand how Bangladesh fights this problem we must first know the basics. This includes understanding the causes, the effects and the new trends that shape laundering. This knowledge will set the stage for the chapters on laws, agencies and enforcement challenges, in Bangladesh.

Chapter 3: Bangladesh's Legal Framework and Institutional Mechanisms

3.1 Overview of Bangladesh's Legal Framework

Bangladesh has built an institutional system that is designed to prevent and fight money laundering. This system has grown over time as financial crimes have become more complex and as the country has had to meet expectations. The main law in this area is the Money Laundering Prevention Act 2012 (MLPA 2012). It replaced laws and created a clearer process for investigating, prosecuting, collecting financial intelligence freezing assets and seizing property gained through crime.[29]

The MLPA 2012 does not work alone. It works together with other laws. These include the Anti-Terrorism Act 2009 the Money Laundering Prevention Rules 2019 the Mutual Legal Assistance in Criminal Matters Act 2012 the Anti-Corruption Commission Act 2004 the Customs Act 1969 the Code of Criminal Procedure 1898 the Penal Code 1860 and the Extradition Act 1974. The Bangladesh Financial Intelligence Unit (BFIU) agrees that these laws are parts of the countries anti-money laundering and counter-terrorist financing framework.[30]

This legal framework can be grouped into three levels. First there are the laws that define what money laundering is and set out criminal penalties. Second there are rules meant to stop money laundering before it happens. These require banks and other reporting bodies to check their customers keep records and report activity. Third there are institutions that play a role—like the BFIU, Bangladesh Bank, the Anti-Corruption Commission (ACC) law enforcement agencies, prosecutors and courts. All of them must work together. The reason is simple: stopping money laundering cannot rely on criminal punishment. Preventive steps, intelligence, investigations recovering stolen money and working with other countries are just as important.

Bangladesh's legal system has also been shaped by standards. The Financial Action Task Force (FATF) sets guidelines on how countries should tackle money laundering and confiscation. These cover actions, beneficial ownership, who is responsible and international cooperation.[31] In 2016 the Asia/Pacific Group on Money Laundering (APG) which works under FATF did a review of Bangladesh. The review said the country had made progress in meeting technical requirements.. It also pointed out that results were not equal across all areas.[32]

So Bangladesh's current anti-money laundering system combines laws, regulations, specialized agencies and cooperation with other nations. The real challenge is not having these laws. The bigger issue is making sure they are applied properly and consistently every time.

[29] Money Laundering Prevention Act 2012 (Act No 5 of 2012).
[30] Bangladesh Financial Intelligence Unit, 'What is the legal framework to combat money laundering and terrorist financing in Bangladesh?' (BFIU, 2026) BFIU FAQ.
[31] Financial Action Task Force, *The FATF Recommendations: International Standards on Combating Money Laundering and the Financing of Terrorism & Proliferation* (FATF, as amended June 2026).
[32] Asia/Pacific Group on Money Laundering, *Anti-money Laundering and Counter-terrorist Financing Measures: Bangladesh Mutual Evaluation Report* (APG 2016).

3.2 Money Laundering Prevention Act, 2012

The Money Laundering Prevention Act 2012 is the law in Bangladesh dealing with money laundering. It was passed as Act No 5 of 2012. Started applying from January 16 2012 even though it was enacted later. It replaced both the Money Laundering Prevention Act 2009 and the Money Laundering Prevention Ordinance 2012.[33]

One key part of this law is its definition of money laundering. Section 2(v) lists types of behavior that count as money laundering. This includes knowingly moving, changing or transferring money to hide where it came from helping someone avoid getting punished for a crime sending illicit funds into or out of the country doing transactions just to avoid being reported, buying or keeping property when you know it comes from a crime and taking part in or trying to carry out such acts.

The Act also names a number of crimes that can lead to money laundering. These include corruption and bribery, fraud, forgery, drug-related crimes, human trafficking, kidnapping, robbery, smuggling, tax crimes, terrorism financing, environmental crimes, sexual exploitation, insider trading organized crime and racketeering. This broad list matters because money laundering usually follows another crime. By naming many possible starting points the law gives authorities a solid base to track and punish the money trail.

Section 4 makes money laundering an offence and sets strong punishments. Anyone who commits helps commit or plans to commit money laundering can be sentenced to between four and twelve years in prison. They may also face a fine. The size of the fine depends on the value of the property involved or a minimum amount set by law—the higher of the two. The court can also order that property linked to the crime be taken away. Importantly section 4(5) says that a person does not need to have been convicted of the original crime to be charged with money laundering.

This rule is very useful in practice. Often the money from a crime moves through accounts, companies and even countries before investigators find its source. If proving a prior conviction were required it would make prosecution harder. By treating money laundering the law focuses on the act itself not just the crime behind it.

The Act also sets out procedures for investigation and trial. Under section 9 offences under the Act are considered crimes under the Anti-Corruption Commission Act 2004. They can be investigated by the ACC or any officer authorized by it including officers from approved investigative groups. Trials are held in front of a Judge.

There are rules about the nature of the offence, bail and court supervision. Money laundering is an offence meaning police can arrest without a warrant. It is non-compoundable so the victim cannot drop the case.. It is non-bailable under section 11 unless specific conditions in section 13 allow for bail. Section 12 also requires the ACC's approval before a court can begin proceedings under the Act.

Another important point is how the law treats property connected to money laundering. Sections 14–21 explain how to freeze, seize, confiscate, return or dispose of property. These rules show that the goal of money laundering laws goes beyond punishing people. It also aims to cut off the gains from crime.

In short the Money Laundering Prevention Act 2012 provides the legal structure, for Bangladesh's

[33] Money Laundering Prevention Act 2012 (Act No 5 of 2012), ss 1 and 31.

anti-money laundering efforts. However the success of the system still depends on whether the institutions have the ability to examine financial cases identify the true owners of money and property follow the trail of assets and bring successful prosecutions.

3.3 Money Laundering Prevention Rules and Regulatory Measures

The Money Laundering Prevention Rules 2019 provide a regulatory framework for implementing the provisions of the MLPA 2012. [11] While the Act establishes the offences, institutional powers and broad obligations the Rules assist in translating those legal requirements into operational arrangements.

The regulatory framework is particularly important for reporting organizations. Bangladesh's AML regime does not place responsibility on criminal investigation agencies. Banks, institutions, insurers, money changers, money transfer businesses, capital-market intermediaries and several designated non-financial businesses and professions are brought within the reporting framework.

The BFIU and Bangladesh Bank have issued circulars, guidelines and instructions to assist reporting organizations in complying with AML/CFT requirements. These include requirements relating to customer identification, suspicious transaction reporting, cash transaction reporting, record keeping, internal compliance systems and the appointment of compliance officers. BFIUs published regulatory materials demonstrate that separate instructions have been issued for banks, insurance companies, capital-market intermediaries, money changers and designated non-financial businesses and professions.[34]

This regulatory approach is based on the principle that prevention should take place before illicit funds become integrated into the financial system. Financial institutions are therefore expected to identify transactions and report suspicious activities rather than simply wait for law-enforcement agencies to discover criminal conduct after the event.

However regulatory requirements are effective when reporting organizations apply them consistently. Weak customer identification, inadequate beneficial ownership checks, poor transaction monitoring or delayed reporting can create opportunities for criminals to move funds through the formal financial system. Consequently supervision and meaningful sanctions are essential components of the regulatory framework.

3.4 Bangladesh Financial Intelligence Unit-BFIU

The Bangladesh Financial Intelligence Unit (BFIU) is one of the important institutions in Bangladesh's AML/CFT framework. It was established within Bangladesh Bank under section 24 of the MLPA 2012 to exercise the powers and perform the functions relating to intelligence and prevention of money laundering.

The BFIU functions as Bangladesh's financial intelligence agency. Its principal role is to receive, analyse and disseminate intelligence relating to money laundering, terrorist financing and suspicious financial

[34] Bangladesh Financial Intelligence Unit, 'Circulars and Instructions' (BFIU).

activities. The Unit receives information from reporting organizations and other relevant sources. Can provide relevant intelligence to law-enforcement authorities where necessary.

Section 24 gives the BFIU authority to obtain information from semi-governmental, autonomous and other relevant organizations. It may also provide information to law-enforcement agencies. Exchange financial intelligence with foreign Financial Intelligence Units.

The role of the BFIU is particularly important because financial intelligence can reveal patterns that may not be immediately apparent from criminal investigations. For example a single bank transaction may appear ordinary. A series of transactions involving multiple accounts, shell companies, unusual cash deposits and international transfers may indicate a laundering scheme. Financial intelligence analysis helps investigators identify patterns.

The BFIU also plays a role in international information exchange. Under section 26 of the MLPA 2012 it may enter into memoranda of understanding with financial intelligence units and exchange information subject to the statutory safeguards.

The continuing institutional development of the BFIU is also reflected in its publication of reports and other AML/CFT materials. The BFIU currently maintains reports for successive financial years, including 2024–2025 and earlier periods demonstrating its continuing role in Bangladesh's AML framework.

Nevertheless financial intelligence is only useful when it is effectively transformed into investigation and prosecution. A major institutional issue is therefore the connection between intelligence generation and subsequent law-enforcement action.

3.5 Bangladesh Bank and Reporting Organizations

Bangladesh Bank has a regulatory role in preventing money laundering. Section 23 of the MLPA 2012 gives Bangladesh Bank powers and responsibilities including analyzing cash and suspicious transaction information requesting information from reporting organizations directing the suspension or freezing of transactions in appropriate circumstances issuing preventive directions and monitoring compliance.

This creates a relationship between Bangladesh Bank and reporting organizations. Under section 25 reporting organizations must maintain accurate customer identification information preserve transaction records for at least five years after closure of an account provide information to Bangladesh Bank when required and submit suspicious transaction reports where suspicious transactions or attempted suspicious transactions are identified.

The concept of a reporting organization is deliberately broad. Section 2(w) includes banks, financial institutions, insurers, money changers, money transfer businesses, certain capital-market entities, NGOs/NPOs, cooperative societies real-estate developers, dealers in metals or stones trust and company service providers, lawyers, notaries, other legal professionals and accountants as well as other institutions notified by Bangladesh Bank with government approval.

This broad coverage is important because criminals do not necessarily launder money through banks. Real estate, company structures, professional services, money transfer systems and other sectors may also be used to disguise the origin or ownership of assets.

Reporting organizations therefore act as the line of defense, within the financial system. Their responsibilities include customer identification, record keeping, transaction monitoring and

suspicious transaction reporting. Bangladesh Bank may impose regulatory sanctions where reporting organisations fail to comply with statutory requirements.

However compliance should not become merely an exercise. An institution may technically maintain KYC records. Still fail to identify sophisticated laundering activities. Effective AML compliance therefore requires trained personnel, appropriate technology, risk-based monitoring and continuous supervision.

3.6 Investigation and Law-Enforcement Agencies

Money laundering investigations in Bangladesh involve institutions because the underlying crimes may come under different parts of criminal law. The MLPA 2012 recognizes the ACC as the investigation authority while allowing officers from other investigation agencies to investigate certain offences.

The BFIUs guidance lists agencies involved in investigating the original crimes, including the Criminal Investigation Department (CID) of Bangladesh Police, Anti-Corruption Commission, Department of Narcotics Control, National Board of Revenue Department of Environment and Bangladesh Securities and Exchange Commission.

The involvement of agencies makes sense because money laundering can come from corruption, fraud, drug trafficking, customs violations, tax violations, human trafficking, stock market violations or other original crimes. An investigation into the crime can then produce financial information that later is important for a money laundering investigation.

The Criminal Investigation Department (CID) has a role in handling financial and organized crimes, especially the original crimes that fall under police control. The Department of Narcotics Control is involved when the illegal money comes from drug trafficking while the National Board of Revenue (NBR) may be important in cases involving tax, customs and trade violations. Similarly the Bangladesh Securities and Exchange Commission (BSEC) may be important when money laundering is connected with violations in the stock market.

The main problem is working together. Financial crime often crosses groups and delays in sharing information can make investigations less effective. Money laundering investigations also need knowledge of accounting, banking, company structures, digital transactions and global financial systems. So law-enforcement agencies need both investigation skills and special financial investigation skills.

3.7 Role of the Anti-Corruption Commission

The Anti-Corruption Commission (ACC) plays a role in Bangladesh's money laundering enforcement system. The Anti-Corruption Commission Act 2004 creates the Commission. Gives it a legal base for handling corruption-related crimes.[35]

Under section 9 of the MLPA 2012 money laundering crimes are considered as crimes under the ACC Act and the ACC or an officer approved by it can investigate these crimes. This gives the ACC a role in coordinating and investigating money laundering cases.

The importance of the ACC is clear when the money comes from corruption, bribery, misuse of power or other economic crimes. In situations investigators may have to look at both the original corrupt actions and the way the money is hidden or moved.

The MLPA 2012 also requires ACC approval at steps in the process. Under section 12 a court cannot start looking into a crime without ACC approval. An investigator must get approval before sending the report.

Although these rules are meant to ensure control and responsibility they can also create steps that need administrative work. If approvals, investigations or communication between agencies are delayed the whole legal process can be slower.

The ACC therefore has two jobs: it must do its investigations well. Also make sure money laundering cases are ready to pass legal checks.

3.8 Freezing, Confiscation and Recovery of Illicit Assets

Freezing and taking away assets are parts of an effective anti-money laundering system. If a crime is punished but the illegal money is not taken back the person who did the crime might still have a lot of money after being found guilty. Bangladesh's MLPA 2012 therefore has steps for freezing, holding taking away and getting rid of property.

Under section 14 a court can order the freezing or holding of property in or out of Bangladesh if the property is connected to money laundering or another crime. The request must have details about the property, the reasons for the request and the chance that the property might be moved before the case is decided.

The law also has ways to protect people who're not guilty. A person or group that has an interest in frozen or held property can ask for it back under section 15. This is important because asset recovery needs to balance the governments need to stop the movement of money with the rights of innocent people.

Section 17 deals with taking away property. After a person is found guilty the court can order the taking of property in or out of Bangladesh that is directly or indirectly involved in money laundering or a crime that led to it. The law also allows taking property in cases where the person who did the crime runs away or dies after being charged.

[35] Anti-Corruption Commission Act 2004 (Act No V of 2004).

The law also has ways to get back the value of the money. If illegal money cannot be found, taken back or has been lost the court can take property of the same value or make the person pay a fine equal to the lost money. This is important because smart criminals might try to hide or move their money before investigators find it.

If the illegal money is mixed with money that was earned legally section 17(8) allows taking up to the value of the illegal money or if that value is not clear the full value of the mixed money.

After taking property the government can get rid of it through proper ways like selling it at an open auction and the money goes into the states money box.

3.9 International Cooperation and Mutual Legal Assistance

Money laundering often crosses borders. Criminal money might be made in one country moved through another and finally hidden or invested in a third. Because of this laws within one country are not enough to deal with these complex international cases.

Bangladesh passed the Mutual Legal Assistance in Criminal Matters Act in 2012. This law creates a system for working with countries during criminal investigations and legal cases. The law deals with helping identify freeze and seize money and property linked to terrorism.

The MLPA 2012 also includes rules that support cooperation across borders. Section 26 allows the government to make agreements with nations—either bilaterally or with groups of countries—aimed at stopping money laundering. The BFIU can sign memorandums of understanding with Financial Intelligence Units. It can ask for information. Share it as long as the law allows.

The law also gives ways to handle assets located in Bangladesh that're under a foreign order for confiscation or return. The Attorney General's Office can ask another country for help in carrying out a confiscation or asset-return order from a Bangladeshi court.

This mutual legal assistance system is especially important in cases involving bank accounts, foreign real estate, international businesses, foreign bank records and assets sent outside Bangladesh.

Bangladesh's system for cooperation matches the standards set by the Financial Action Task Force or FATF. FATF Recommendation 37 talks about legal assistance. Recommendations 38 to 40 cover freezing and seizing assets, extradition and other forms of cooperation.

In 2016 the Asia/Pacific Group on Money Laundering (APG) reviewed Bangladesh's laws. It said the country had a legal framework for cooperation.. It also pointed out there were gaps, in how well the laws worked in practice.[36] Later reports showed that Bangladesh had made progress in meeting many of the FATF requirements.

So international cooperation should not be seen as a step. It must be considered a core part of fighting money laundering today.

[36] Asia/Pacific Group on Money Laundering, *Anti-money Laundering and Counter-terrorist Financing Measures: Bangladesh Mutual Evaluation Report* (APG 2016).

3.10 Institutional Coordination and International Standards

The effectiveness of Bangladesh's -money laundering framework relies heavily on coordination between different institutions. No single agency has all the information or expertise needed to handle money laundering cases. The BFIU can spot financial patterns. Bangladesh Bank supervises reporting organizations. The ACC investigates money laundering crimes. The CID and other agencies look into the crimes or predicate offences. Prosecutors bring cases.. Courts decide guilt and order the confiscation of illegal assets.

The FATF Recommendations offer an international standard for evaluating this system. They cover AML/CFT policies and coordination money laundering and asset seizure preventive measures, transparency and beneficial ownership, competent authorities and international cooperation.

A major focus is the risk-based approach. Of treating every transaction and every customer the same institutions must understand their specific risks for money laundering and terrorist financing. They should then use their resources based on those risks. The FATF has often said that the strength of AML systems is not about having laws but about using them properly in real situations.

Bangladesh's 2016 APG Mutual Evaluation found that the country had technical compliance in some areas but effectiveness varied. For example Bangladesh was rated compliant in reporting transactions and law enforcement duties. However areas like risk assessment, beneficial ownership, supervision and international cooperation received technical scores.[37]

This difference between compliance and actual effectiveness is especially important, in Bangladesh. Just because a country has a lot of laws does not mean that money laundering is really being stopped or punished. The real test is whether suspicious transactions are found, whether financial intelligence is analyzed well whether investigations are done quickly whether criminals are convicted and whether illegal assets are recovered.

3.11 Conclusion

Bangladesh has built a legal and institutional system to fight money laundering. The Money Laundering Prevention Act 2012 forms the law. It clearly defines what money laundering is lists the crimes that can lead to it sets out punishments and creates rules for investigation freezing of assets and confiscation. The Money Laundering Prevention Rules 2019 and other regulatory instructions add details to help this law work in real situations.

The institutions involved also form a structure. The BFIU handles intelligence – collecting and analysing suspicious transactions. Bangladesh Bank oversees the organisations that must report activities. The ACC leads the investigations into money laundering cases. Other law enforcement agencies look into the crimes – the predicate offences – based on their own areas of responsibility. The courts then review these cases decide guilt and approve asset seizures.

This system also takes into account that money laundering crosses borders. The Mutual Legal Assistance in Criminal Matters Act 2012 and the international cooperation clauses in the MLPA 2012 allow Bangladesh to share information with countries trace assets located abroad and enforce

[37] Asia/Pacific Group on Money Laundering, *Anti-money Laundering and Counter-terrorist Financing Measures: Bangladesh Mutual Evaluation Report* (APG 2016).

confiscation orders both domestically and from foreign jurisdictions.

Having good laws does not automatically mean they are enforced well. Bangladeshs experience, as seen in the APG assessment shows that technical compliance. Following the rules on paper. Is not the same as effectiveness. Making the system work in practice. The key challenge now is not creating laws but improving how existing ones are applied. This means coordination between institutions, specialist teams for investigation stronger financial intelligence, faster prosecutions, better recovery of stolen assets and truly effective international cooperation.

Chapter 4: Enforcement Challenges and Practical Limitations

4.1 Overview of Enforcement Challenges

Bangladesh has built a complete legal and institutional framework to fight money laundering. The Money Laundering Prevention Act 2012 (MLPA) the Money Laundering Prevention Rules 2019 the Anti-Terrorism Act 2009 and the creation of the Bangladesh Financial Intelligence Unit (BFIU) form the base for Bangladesh's anti-money-laundering system.[38] Nevertheless having laws and institutions does not automatically mean enforcement will be strong. The main challenge is turning authority into quick investigations, successful prosecutions, seizure of criminal assets and return of stolen money.

Enforcing money laundering laws is very hard because laundering activities are hidden with transactions, various banks, shell companies, informal routes and cross border moves. Investigators must prove that suspicious money exists and also show how that money was made moved, hidden or mixed into the economy. This often needs knowledge, good records and teamwork between many institutions.[39]

The 2016 Asia/Pacific Group on Money Laundering (APG) Mutual Evaluation of Bangladesh said Bangladesh had made good progress in building its AML/CFT framework but the APG Mutual Evaluation also found gaps in how well the system works. Bangladesh scored lower on investigation, prosecution, seizure of assets and use of intelligence. This shows that having the laws on paper does not mean they work well in real life. A country can have laws but still struggle to use them effectively.

Another problem is that money laundering changes all the time. Old bank channels are now joined by money, online payments, digital platforms, virtual assets and smarter ways to move value. Because of this enforcement agencies must keep improving their methods and technology skills.

The success of Bangladesh's AML system depends not only on tougher laws but also, on how well institutions work together how skilled the people are, how strong the technology is and how fast courts act.

4.2 Challenges in Investigation and Prosecution

Investigation is one of the important stages in fighting money laundering. A weak investigation can lead to a failed prosecution. Under section 9 of the MLPA money laundering offences are treated as scheduled offences under the Anti-Corruption Commission Act 2004. This means the Anti-Corruption Commission or other authorized agencies can investigate these cases. While this gives a basis for investigation money laundering investigations are usually more complex than regular criminal investigations.

One major challenge is the complexity involved in laundering transactions. Investigators often need

[38] Money Laundering Prevention Act 2012 (Bangladesh); Money Laundering Prevention Rules 2019 (Bangladesh); Anti-Terrorism Act 2009 (Bangladesh).

[39] Asia/Pacific Group on Money Laundering (APG), *Anti-Money Laundering and Counter-Terrorist Financing Measures—Bangladesh: Mutual Evaluation Report* (APG 2016).

to look into bank accounts company records, property deals, loan documents, tax records and foreign transfers. These transactions may involve people or companies making it hard to find out who really benefits from the money. In situations traditional investigation methods may not work. Investigators need skills in financial investigation. They must be able to track how money moves between accounts and across different countries.

Another issue is the time it takes to gather and review evidence. Records may come from different banks or institutions. If the money moves across borders investigators may need help from countries. The longer the investigation takes the more likely it is that evidence will become hard to get. There is also a risk that criminal assets will be moved out of the reach of authorities.

The prosecution stage brings its challenges. In a money laundering case the prosecution must build a chain of evidence. This chain must connect the accused person to the money or property. Simply proving that someone had an amount of money does not prove the offence. The prosecution must show that the money came from activities. The evidence must be strong enough to meet the standard of proof. [6] If the documentation is poor the financial analysis is incomplete or the link between the accused and the illegal proceeds is weak the case may fail.

The APG evaluation pointed out that Bangladesh needs to improve the quality and effectiveness of money laundering investigations and prosecutions. It said that just having laws is not enough. [7] The country should focus more on building investigative capacity. This means training investigators improving access to data and strengthening cooperation, with other agencies. Strengthening work should be a top priority, not just a formal requirement.

4.3 Lack of Effective Inter-Agency Coordination

Money laundering is a problem that cannot be solved by an institution alone. In Bangladesh the anti-money laundering framework includes bodies such as the BFIU, the Anti-Corruption Commission, Bangladesh Police, Customs authorities, the National Board of Revenue and other regulatory and law enforcement agencies. Every institution may hold information that is important for a money laundering investigation.

The BFIU plays a role in receiving and analyzing Suspicious Transaction Reports, Suspicious Activity Reports and Cash Transaction Reports and in sharing financial intelligence with relevant law enforcement authorities. The success of this system however relies heavily on whether the information's shared correctly and then used by investigators.

One practical difficulty is that agencies may keep information in databases and follow different administrative procedures. If information is not shared quickly investigators may lose chances to find and freeze criminal property. This problem grows worse when a case involves types of offences, such as corruption, fraud, tax evasion, smuggling or narcotics offences.

The FATF framework recognizes cooperation and coordination as a key part of an effective anti-money laundering and counterterrorist financing system. Bangladesh's 2016 Mutual Evaluation rated national cooperation fairly well in technical terms but effectiveness was still a bigger issue.[40] The challenge therefore is not to create mechanisms for cooperation but also to make sure those

[40] APG, *Anti-Money Laundering and Counter-Terrorist Financing Measures—Bangladesh: Mutual Evaluation Report* (n 2).

mechanisms work well in each investigation.

Better coordination would need information sharing procedures, interoperable databases, joint investigative teams for complex cases and clear responsibilities, for each institution. Without these measures duplication of work and delays may lower the effectiveness of strong legal powers.

4.4 Institutional and Human Resource Limitations

Effective money laundering enforcement depends on knowledge. Investigators, prosecutors, financial analysts and judges must understand banking transactions, company structures, accounting practices, taxation, international transfers and digital financial systems. These areas are complex. Require expert understanding. That complexity leads to a demand for skilled personnel who can handle these matters effectively.

One major practical challenge is the shortage of people with skills in financial investigation and forensic accounting. Money laundering cases often involve amounts of financial data. Without trained staff who can properly analyze this data important evidence might go unnoticed. Fail to be presented clearly in court.

Institutional capacity is also limited by workload. Agencies tasked with fighting money laundering often have to manage other criminal and regulatory issues at the same time. When specialized AML units are understaffed or lack technical tools investigations can take much longer than they should. This delays justice and weakens the response.

The importance of institutional capacity is shown in the APG assessment. It pointed out weaknesses in how Bangladesh's anti-money laundering and counter-terrorist financing system works even though the country has made progress in meeting technical requirements. This shows that building capacity is not about hiring more people. It also means training in financial investigation handling digital evidence tracing assets identifying beneficial ownership and cooperating across borders.

Bangladesh’s BFIU has taken steps to address this through continuing training and capacity-building programs. Still such efforts need to be supported by staff, up-, to-date investigative tools and stable institutional frameworks. Then can improvements be lasting and meaningful.

4.5 Challenges in Financial Intelligence and Suspicious Transaction Reporting

Financial intelligence is one of the important sources of information for finding money laundering. Under the MLPA reporting organizations have duties related to customer information, record keeping and reporting transactions. The BFIU. Looks at STRs, SARs and CTRs and might share information with the right people.

The number of strange reports is a problem on its own. During the year 2023–24 the BFIU got 17,345 strange reports, which included 11,736 STRs and 5,609 SARs. A lot of reports can give information but it can also cause pressure. Financial intelligence officers need to tell important cases from transactions that look strange but might not mean something bad is happening.

Another problem is how good and complete the reports are that organizations send in. A system for reporting does not work well when the reports have not information, wrong customer details or not enough reasons for being suspicious. Good reporting needs more than following the law. It also needs

an idea of the risks inside the organizations.

The BFIU has given guidelines and letters about AML/CFT compliance, including things about electronic KYC and trade-based money laundering. So new technology means that the ways to report must keep changing.

The problem has two parts: first making sure that strange transactions are reported;. Second making sure that the information reported is good enough, for checking. A lot of reports should not be seen as proof that the AML system is working well unless those reports help with financial analysis and taking action.

4.6 Challenges in Asset Tracing, Freezing and Recovery

The main goal of money laundering enforcement is not to convict offenders. Money laundering enforcement must also stop criminals from keeping the money they earned from crimes. Asset tracing, freezing, seizure, confiscation and recovery are therefore parts of strong anti-money-laundering enforcement.

In practice tracing criminal assets can be hard because illicit proceeds are often turned into land, houses, businesses, vehicles, securities or other property. The property may also be registered under the names of relatives, associates or companies of the real owner. These arrangements make it hard for investigators to link the property to the proceeds.

Timing is another problem. If authorities find assets only after a long investigation or prosecution the assets may already have been transferred, sold or moved outside Bangladesh. For this reason modern international AML standards put emphasis on early asset tracing and provisional freezing or seizure. I believe that early action is essential.

Bangladesh's legal framework gives tools for dealing with property but real effectiveness depends on investigators finding assets early and getting the needed legal orders. The APG assessment saw confiscation and provisional measures as a part of the AML system and pointed out areas that need improvement in effectiveness.

Asset recovery also needs accurate valuation, proper preservation and professional management of seized property. If property is poorly managed during proceedings its value may drop. I think asset recovery should be active from the start not after conviction.

4.7 Cross Border Money Laundering and International Cooperation

Money laundering often crosses national borders. Criminal proceeds can move through foreign bank accounts, companies, international trade transactions or other jurisdictions. This poses a challenge for Bangladeshi investigators because domestic powers usually have limited reach beyond the country.

Bangladesh has the Mutual Legal Assistance in Criminal Matters Act 2012 which gives a framework for cooperation in criminal matters, including investigation, prosecution, judicial proceedings and freezing and seizure of proceeds of crime. The MLPA also lets the government sign agreements with states to prevent money laundering.

However having legal mechanisms does not automatically mean quick international cooperation.

Requests for evidence bank information, asset identification or seizure may need to follow the laws and procedures of the requested state. Differences in systems evidentiary requirements, language, documentation and institutional procedures can cause big delays.

The APG Mutual Evaluation rated Bangladesh's legal assistance, freezing and confiscation assistance, extradition and other international cooperation mechanisms as largely compliant in technical terms. Nevertheless the effectiveness of cooperation still depends on how fast and how well actual requests and responses are handled.

The growing movement of funds through digital channels makes this issue even more important. Criminals can move funds across jurisdictions quickly while formal legal cooperation can take longer. Bangladesh therefore needs both mutual legal assistance and faster operational cooperation, through the right international networks and financial intelligence channels. I think speed is vital here.

4.8 Technological and Emerging Financial Risks

Technology has changed the sector in many ways. It has brought convenience and speed. It has also opened new doors for money laundering. Mobile financial services, internet banking, electronic payment systems, online businesses and virtual assets allow money to move quickly. These tools can make traditional financial monitoring less effective. Criminals may use them to hide activities.

Bangladesh has taken steps to respond to these risks. The country has introduced rules to handle Know Your Customer (KYC) requirements and technology-related anti-money laundering (AML) issues. The Bangladesh Financial Intelligence Unit (BFIU) has also issued guidance on electronic KYC and trade-based money laundering. These actions show that the regulatory system is trying to keep pace with financial risks.

Still technology keeps changing. This creates ongoing challenges for enforcement. Criminals can use accounts, digital platforms, fake identities and complicated transaction patterns to hide where money comes from or where it is going. To fight this investigators need access to digital forensic tools. They also need trained staff who can understand and analyze financial evidence.

Another growing concern is the use of assets and decentralized financial technologies. The Financial Action Task Force (FATF) has recognized assets and virtual asset service providers as areas that need proper AML and counter-terrorist financing (CFT) measures. Bangladesh’s regulators must watch these developments carefully. They must not allow gaps to form between financial rules and new forms of digital finance.

The main problem is that technology often moves faster than regulation and investigation capabilities. A legal system that works well against bank-based money laundering may no longer be effective when criminal money flows through new digital finance channels. This means that laws and enforcement tools must evolve quickly to stay ahead.

4.9 Challenges in Proving Money Laundering Offences

One of the parts of prosecuting money laundering is proving the link between the person accused the criminal proceeds and the laundering activity. The prosecution must show a chain of transactions and prove that the money came from or was connected to a criminal offence.

The Money Laundering Prevention Act (MLPA) lists a range of predicate offences from which proceeds can come. In real cases tracing the source of the money can be very difficult. This is especially true when the money passes through accounts or gets mixed with legitimate income. The more steps involved the harder it becomes to follow the trail.

Using companies, nominees and third-party accounts adds another layer of difficulty. These tools can make it hard to find the person who owns or benefits from the money. A person might not show up in transaction records all but they could still control the funds or profit from them.

Another major challenge is the amount of information involved. A case might include hundreds or even thousands of transactions. The prosecution must present the evidence clearly and in a way that a judge or jury can understand. Financial data that is available but not properly analyzed may not help build a case.

For this reason successful prosecutions depend on teamwork between investigators, financial analysts and prosecutors. Financial evidence must be organized into a story not just dumped as a pile of documents. A structured evidence narrative can make all the difference, in proving guilt.

4.10 Delay in Judicial Proceedings and Asset Confiscation

Delay in proceedings can weaken the effectiveness of AML enforcement. Money laundering cases are often document heavy. May involve numerous witnesses, financial records and expert evidence. Such complexity can contribute to proceedings.

The problem becomes more serious where criminal assets remain frozen or subject to proceedings for a long period. If confiscation is delayed until the conclusion of litigation the economic value of the recovery may be reduced and the deterrent effect of the law weakened.

The general criminal procedure framework provides mechanisms for investigation production of documents and criminal proceedings but money laundering cases often require financial evidence that can make proceedings more demanding. Effective case management is therefore essential.

Judicial delay also affects confidence. The purpose of confiscation is not simply to impose a punishment after conviction; confiscation is also to remove the economic benefit obtained from criminal activity. International standards increasingly emphasize freezing, seizure and confiscation of criminal property.

For Bangladesh reducing delay requires better case preparation, specialized prosecutorial capacity, effective management of financial evidence and appropriate judicial attention to complex financial crime cases.

4.11 Practical Limitations in Asset Recovery

Asset recovery represents the most difficult practical stage of the entire AML process. Detecting transactions and securing a conviction are important but the ultimate objective is substantially weakened if illicit assets cannot be recovered.

Several practical obstacles may arise. First assets may have already been transferred to parties or converted into other forms of property. Secondly assets may be located outside Bangladesh. Thirdly

the accused may challenge ownership seizure or confiscation before the courts. Finally property that has been frozen for a period may become difficult to manage or preserve.

International experience also demonstrates that only a fraction of proceeds are recovered globally. FATF has consequently placed increasing emphasis on making asset recovery a policy and operational priority and on strengthening cooperation among law enforcement agencies, FIUs, prosecutors and asset recovery practitioners.

For Bangladesh improving asset recovery requires an approach that begins at the investigation stage. Investigators should identify criminal assets while simultaneously establishing the underlying offence. Financial intelligence should therefore be used not to detect suspicious transactions but also to identify property that may ultimately be subject to freezing, seizure and confiscation.

The country also needs mechanisms for identifying beneficial ownership and following assets through corporate and financial structures. Without beneficial ownership information criminal proceeds can remain hidden behind companies or nominees.

Ultimately asset recovery should be viewed as a measure of enforcement success. A system that produces convictions but fails to deprive offenders of their gains cannot fully achieve the preventive and deterrent objectives of AML legislation.

4.12 Conclusion

Bangladesh has made progress in establishing laws and institutions to combat money laundering but enforcement remains affected by several practical limitations. The major difficulties include financial investigations, weaknesses in prosecution, inadequate inter-agency coordination, shortages of specialized human resources problems in analyzing financial intelligence difficulties in tracing and recovering assets, cross-border transactions, technological risks and delays in judicial proceedings.

The evidence suggests that the central problem is no longer the absence of legislation. Bangladesh has a statutory and institutional framework and international assessments recognize significant progress in technical compliance.[41] The difficult question is whether these legal and institutional arrangements can consistently produce effective investigative, prosecutorial and asset recovery outcomes.

The BFIUs increasing volume of intelligence demonstrates that the reporting and detection side of the system has developed considerably. However the real test lies in what happens after suspicious activity is detected—whether intelligence is converted into investigation whether investigation produces prosecution and whether criminal assets are ultimately confiscated and recovered.

Therefore future reform should focus on implementation than legislation alone. Greater inter-agency coordination specialized financial investigation units, improved forensic capacity, stronger international cooperation, faster judicial processes and an asset-recovery-oriented approach would

[41] FATF/APG, *Anti-Money Laundering and Counter-Terrorist Financing Measures—Bangladesh: Mutual Evaluation Report* (2016); subsequent follow-up reports record Bangladesh's progress in technical compliance while Bangladesh remained subject to enhanced follow-up.

significantly strengthen Bangladesh's AML regime. These reforms would also help bridge the gap between compliance and practical effectiveness which remains one of the central challenges in combating money laundering, in Bangladesh.

Chapter 5: Judicial Responses, International Standards and Reform Measures

5.1 Overview of Judicial and Legal Responses

The strength of an anti-money laundering system does not rely solely on having laws in place. It also depends on how those laws are understood, used and enforced. In Bangladesh the legal response to money laundering has evolved through a mix of laws, institutions and court actions. The main law is the Money Laundering Prevention Act 2012 (MLPA). This act sets out the rules for stopping money laundering. Alongside it agencies like the Bangladesh Financial Intelligence Unit (BFIU) the Anti-Corruption Commission (ACC) law enforcement bodies, prosecutors and courts all play roles. They work together to find, investigate and decide on money laundering cases.[42]

The MLPA was a step forward. It allows authorities to investigate, prosecute, seize and confiscate property linked to money laundering. To support this Bangladesh introduced the Money Laundering Prevention Rules 2019. These rules help improve how reporting and preventive steps are carried out.[43] This shows that Bangladesh is trying to align its -money laundering efforts with global standards.

Having strong laws does not mean they will be effective. Money laundering cases can be very complicated. The illegal activity may happen in one country. The money might pass through several banks or companies in other places. Ownership of assets can be hidden behind shell companies or nominees. The people behind the schemes often use layers of transactions to avoid detection. This means that courts need financial investigations and reliable evidence—both digital and paper-based. Cooperation between agencies is crucial too. Prosecutors must be able to follow the flow of money and present a strong case in court.

The Asia/Pacific Group on Money Laundering (APG) once pointed out weaknesses in Bangladesh's -money laundering and counter-terrorism financing (AML/CFT) system. Later reviews showed that Bangladesh had made progress in meeting rules set by the Financial Action Task Force (FATF).[44]This improvement indicates that the country is moving in the direction.. There is still room for growth. The goal should be to turn compliance into real results—actual convictions and recovered assets.

5.2 Judicial Approach to Money Laundering Cases

The role of the judiciary is essential in making sure that anti-money laundering laws actually work. Courts must balance two things: stopping criminals from keeping the profits of their crimes and protecting the rights of individuals under the law. This includes ensuring treatment and due process.

A good judicial approach looks at what happened not just how things appeared. For example a series of bank transfers using accounts, companies or front businesses might seem normal at first.. If all the pieces fit together in a way that hides the source of funds the court should see it as suspicious. The

[42] Money Laundering Prevention Act 2012 (Bangladesh) (as amended); Bangladesh Financial Intelligence Unit, *Money Laundering Prevention Act 2012 (2015 Incorporated)*.
[43] Money Laundering Prevention Rules 2019 (Bangladesh).
[44] Asia/Pacific Group on Money Laundering (APG), *Anti-money Laundering and Counter-Terrorist Financing Measures – Bangladesh: Mutual Evaluation Report* (APG 2016); APG, *Bangladesh: 3rd Follow-Up Report* (2019). The APG 2019 follow-up report records progress in Bangladesh's technical compliance, including changes following the Money Laundering Prevention Rules 2019.

pattern matters more than the transactions. Still suspicion alone cannot lead to conviction. The prosecution must prove every part of the offence as required by the law.

Courts also shape how the law is used over time. When judges interpret parts of the MLPA they help build consistent legal rulings. Consistency is vital. If different courts apply the law differently it creates confusion. Investigators and prosecutors may hesitate to act. Asset recovery efforts could stall. Clear court decisions make the entire process stronger and more predictable.

Another key concern is fairness in handling property. Freezing and seizing assets can be tools, against money laundering.. These actions must follow strict rules and remain under judicial control. Without safeguards innocent people might lose property without any proof of wrongdoing. An effective anti-money laundering system must be strong enough to fight crime yet also respect the rule of law. It must protect both interest and individual rights.

5.3 Prosecution and Adjudication of Money Laundering Offences

Successful prosecution is a sign that an AML framework works. Bangladesh has a foundation for prosecuting money laundering offences but prosecution can be hard because financial crimes often involve complex transactions and clever ways to hide money.

The prosecution must show evidence that links the accused to the money laundering activity and proves the connection between the accused, the transactions and the property involved. Bank statements, transaction logs, company papers, property records, customs data, tax records, digital messages and other financial intelligence can help build the money laundering trail.

A major challenge is the teamwork between investigators and prosecutors. Financial investigations need knowledge of banking moves, accounting, company structures and digital proof. If investigators gather data without a prosecutorial plan key evidence may not fit the legal parts needed for a conviction.

The prosecution system would gain from specialization. Dedicated prosecutors trained in crime could collaborate closely with investigators from the beginning of a case. This would let evidentiary gaps show up early and cut delays.

The judiciary also plays a part in making sure adjudication is timely. Long trials can weaken the deterrent power of AML laws. Can cause trouble keeping evidence and following assets. A specialized and efficient adjudication process would therefore boost the overall effectiveness of Bangladesh's AML regime.

5.4 Asset Confiscation and Judicial Asset Recovery

Asset recovery is a part of fighting money laundering because criminal prosecution alone does not always take away the financial incentive behind organized crime. If offenders keep the crime money after investigation or conviction the deterrent power of the criminal justice system drops a lot.

The MLPA gives tools to handle property linked to money laundering offences. control over attachment, freezing and confiscation matters because these actions directly touch property rights. Courts therefore must make sure that confiscation steps are based on evidence and follow the legal safeguards that apply.

International standards put emphasis on asset recovery. FATF sharpened its rules about asset recovery in 2023. Then released detailed guidance in 2025 stressing that getting back criminal assets should be seen as a main goal, not just a side effect of prosecution. FATF also pointed out that many jurisdictions still see moderate success in asset recovery showing that confiscation stays a worldwide challenge.

For Bangladesh effective asset recovery needs a move from an offender-centred approach to a financial-disruption approach. Investigators should. Track assets at the start of an investigation instead of waiting for the criminal trial to finish. Investigators, prosecutors and asset-management authorities should also create special procedures, for spotting, keeping, valuing and finally handling confiscated assets.

5.5 International Standards: FATF Recommendations

The Financial Action Task Force (FATF) Recommendations are the international standard used to fight money laundering, terrorist financing and proliferation financing. These Recommendations set up a framework that includes risk assessment, preventive measures, beneficial ownership, financial intelligence, law enforcement, confiscation and international cooperation.

The FATF framework relies largely on a risk-based approach. Of putting the same rules on every person, business or transaction each country must spot and understand its own money-laundering and terrorist-financing risks then put resources where those risks lie.

Many FATF Recommendations matter a lot for Bangladesh. Recommendation 3 looks at money-laundering offences. Recommendation 4 deals with confiscation and provisional measures. Recommendations 9–23 cover measures. Recommendations 24 and 25 focus on transparency and beneficial ownership. Recommendations 30–32 set out duties for law enforcement and financial-intelligence authorities. Recommendations 36–40 highlight cooperation.

The FATF framework shows that a strong AML system cannot rely on criminalization. It must blend prevention, detection, investigation, prosecution, confiscation and international cooperation.

Importantly FATF standards do not force every country to use the institutional model. Each country should tweak the standards to fit its legal and institutional context. Bangladesh therefore needs to apply these international standards in a way that matches its own economy, financial system, technology and unique money-laundering risks.

5.6 Bangladesh and International AML Obligations

Bangladesh has built its AML framework because of international obligations and standards. Bangladesh belongs to the Asia/Pacific Group on Money Laundering (APG) which carries out evaluations and follow-up assessments of its members' AML/CFT systems.

The APG's 2016 Mutual Evaluation Report found serious weaknesses in Bangladesh's AML/CFT framework. That report looked at compliance and also how well Bangladesh's institutions and operations work. Later follow-up reports show that Bangladesh has moved to fix technical problems. For instance the 2019 APG follow-up report noted progress on information-sharing after Bangladesh adopted the Money Laundering Prevention Rules 2019 and related regulations.[

This progress matters because it proves that Bangladesh's AML framework is not stuck in the past. Laws and regulations have moved closer to standards. Still having the rules, on paper does not equal real effectiveness. A country can have laws but still struggle with investigations, prosecutions, convictions and asset recovery.

Therefore Bangladesh's future AML strategy must focus more on how the measures work. FATF stresses that the goal is not just to copy Recommendations into laws but to make sure those measures truly cut money-laundering risks and deliver real results.

5.7 Comparative Lessons and Best Practices

Comparative experience shows that successful AML systems usually depend on cooperation between financial intelligence units, law enforcement agencies, prosecutors, regulators and courts.

One important lesson is the importance of financial investigation. Money laundering investigations need knowledge in accounting, forensic auditing, corporate structures, digital transactions and international financial systems. Bangladesh can therefore benefit from expanding financial investigation teams and giving ongoing training to investigators and prosecutors.

A second lesson is about ownership transparency. Criminals can hide money through companies, nominees, trusts or complicated ownership setups. Identifying the person who owns or controls an organization is therefore very important. FATF has improved its rules about ownership and transparency in recent years.

A third lesson is the need for early asset tracing. International best practice now sees investigation and asset recovery as key parts of criminal investigations instead of separate actions done after a conviction.

A fourth lesson is the use of technology and data analysis. Modern AML systems depend more on transaction monitoring, data analytics and information-sharing to spot unusual financial activity. Bangladesh should therefore keep improving technology skills within the BFIU and other investigative groups.

Finally comparative practice shows that good AML enforcement needs working between the public and private sectors. Banks, institutions, professionals and other reporting organizations are often the first to notice suspicious financial activity. Their responsibility to report should be supported by supervision, guidance and enforcement.

5.8 Proposed Legal Reforms

Bangladeshs AML laws should be reviewed regularly to make sure they keep up with types of financial crime. The quick growth of payments, online financial services, virtual assets and more complex company setups gives criminals new ways to hide and move illegal money.

First the legal system should have better ways to find and handle beneficial ownership. Second rules

about finding and taking assets should be stronger illegal money can be found and kept early in the investigation.

Third the law should make it easier to get information while still protecting privacy and proper legal steps. Fourth rules about evidence and technology-based financial investigations should be clear enough to help modern prosecutions.

Another important change would be to make the legal system better for help. Since money laundering often involves moving money across borders local laws should help authorities respond fast to requests for information freezing and getting back assets.

Finally legal changes should not just focus on making punishments harsher. Strong punishment does not work well if the chance of being caught, charged and losing assets is low. The focus should be, on making enforcement more certain, better and faster.

5.9 Institutional and Enforcement Reforms

Legal reform should be paired with institutional reform. The BFIU, ACC, Bangladesh Police, Customs authorities, tax authorities, prosecutors and courts each hold information and expertise. When coordination is weak gaps form that allow illicit financial flows to slip through.

A stronger institutional model must promote information sharing and joint financial investigations. Inter-agency databases can help investigators link data about bank accounts, companies, tax records, property ownership, customs declarations and other key financial details.

The BFIU capacity must keep improving because financial intelligence is often the step in spotting suspicious transactions. Supervision of reporting organizations is also vital. FATF guidance says supervisors must make sure that financial institutions understand AML/CFT risks and that breaches trigger fair and deterrent enforcement.

Specialized training must be offered to judges, prosecutors and investigators. That training should cover accounting, digital evidence, cryptocurrency risks, corporate structures, beneficial ownership and tracing international assets.

Finally performance must be measured by indicators. Counting transaction reports alone does not show an effective AML system. Greater focus should be on the quality of investigations, prosecutions, convictions, the value of assets frozen and confiscated and the successful recovery of proceeds.

5.10 Strengthening International Cooperation and Asset Recovery

Money laundering often goes beyond borders. Criminal proceeds can move through foreign bank accounts, companies, real estate and other financial structures. Therefore no country can stop money laundering with domestic enforcement alone.

International cooperation must therefore grow through legal assistance, information exchange, extradition arrangements and collaboration between financial intelligence units. Bangladesh’s legal framework already sees the importance of working with countries to meet AML goals.

However formal legal mechanisms are only one part of good cooperation. The speed and quality of responses to requests are just as vital. Delays in getting banking information or freezing assets let criminals move funds out of reach of authorities.

Bangladesh must build capacity for international asset recovery. A dedicated team could coordinate requests, spot assets abroad prepare mutual legal assistance requests and keep communication open with foreign authorities.

The FATF's recent asset recovery guidance gives a foundation, for this approach. It stresses that jurisdictions should treat asset recovery as a policy and operational priority and build mechanisms that can trace, freeze and confiscate assets effectively.

5.11 The Way Forward: Towards an Effective AML Framework

The future of Bangladesh's AML regime should be built on strong legislation, specialized institutions, effective prosecution, judicial efficiency, technological capacity and international cooperation.

First Bangladesh should shift from a compliance-based approach to one that focuses on effectiveness. Following the rules is important. The real test is whether illegal money flows are actually found, stopped and recovered.

Second financial investigation should be at the heart of criminal investigations. Investigators should follow the money from the start not treat financial checks as something done only after the main crime is proven.

Third Bangladesh needs to strengthen transparency around who owns companies and properties. Better access to corporate and property data will make it harder for criminals to hide assets using front people or shell companies.

Fourth the prosecution and judiciary must get specialized support. Having dedicated financial crime prosecutors and training for judges can improve how cases are handled and make outcomes more consistent.

Fifth recovering assets should be a goal. The success of the AML system should not be judged by how many cases are filed or how many convictions are secured. The value and percentage of assets that are frozen seized and returned also matter.

Sixth Bangladesh should keep improving cooperation with countries and international organizations. As financial crimes go more digital and cross-border working with others becomes more essential.

In the end Bangladesh does not need to build an AML system from scratch. The main challenge is to make the current framework more coordinated, specialized, more technologically advanced and more effective in real life.

5.12 Conclusion

Bangladesh has built a legal and institutional base to fight money laundering. The Money Laundering Prevention Act 2012 the Money Laundering Prevention Rules 2019 the BFIU and other enforcement bodies form the core of the AML system. The country has also made progress in meeting standards

after reviews by the APG.[45]

Still big challenges remain. The success of the AML regime depends on the ability of investigators to track transactions prosecutors to build solid cases courts to handle matters quickly and authorities to recover stolen assets. International standards like the FATF Recommendations are helpful. Their success depends on local adaptation.

The key lesson is that laws alone cannot stop money laundering. Real results come from cooperation among institutions, skills, modern technology, fast courts and strong global partnerships. Asset recovery must be a goal, not just a side result of criminal cases.

So Bangladesh should focus on strengthening existing institutions improving investigations and prosecutions increasing transparency, around ownership updating asset recovery tools and expanding international cooperation. If these changes are made steadily Bangladesh can move from a system that only follows rules to one that actually stops finds and gets back the proceeds of crime.

[45] APG, *Bangladesh: 3rd Follow-Up Report* (2019).

Chapter 6: Conclusion

The issue of money laundering has become more and more important in Bangladesh because of its link with corruption, fraud organized crime, illegal trade and other forms of bad financial behaviour. The moving and hiding of money that was obtained in a way can hurt the honesty of the financial system. It can also affect the economy peoples trust and the rule of law. Because of these dangers Bangladesh has slowly created an organizational system to stop look into and take legal action against money laundering. The Money Laundering Prevention Act 2012 has set up the legal way to deal with this crime. At the time organizations like the Bangladesh Financial Intelligence Unit (BFIU) Bangladesh Bank, the Anti-Corruption Commission, the police and the courts have different but linked roles in the whole process.[46]

The goal of this research was to look at how well Bangladesh is dealing with money laundering and to find the big problems that still affect the way the current system works. The study looked at what money laundering's why it happens how it changes, the laws and systems in place the problems in putting them into action what the courts do and what international rules say. From the discussion it is clear that Bangladesh has made a lot of progress in setting up the right legal and organizational base. At the time the study shows that the success of the system cannot be judged just by how many laws are passed or how many organizations are created. The real test of success is how well the officials can find financial activity look into where illegal money goes find the people involved get back the money from crime and take the wrongdoers to court.[47]

The way money laundering works makes this job especially hard. Usually it happens through a series of steps meant to cut the money from where it came. The old steps of placing, layering and integrating explain the way but todays methods are more complex. People who do this might use bank accounts, companies, trade deals, informal money channels, digital payments and international transfers to hide where the money came from. The growth of technology has made transactions faster and easier but it has also given criminals new ways to move money through more complicated paths.

The research also shows that money laundering can't be looked at alone. Corrupt activities, fraud, drug dealing, smuggling, illegal trade and other crimes can create money that people then try to hide or make seem legal. In this way good anti- laundering efforts can help fight bigger crime. If criminals can enjoy the money from actions just punishing the original crime may not stop them from doing more. The money side of the crime must be dealt with along with the crime itself.

From a point of view Bangladesh has built a good legal base with the Money Laundering Prevention Act 2012. The Act says that money laundering is a crime and gives ways to look into it take action and punish those who do it. The legal system is supported by laws like the Anti-Terrorism Act 2009 and the Mutual Legal Assistance in Criminal Matters Act 2012 which are important when money

[46] *Money Laundering Prevention Act 2012* (Bangladesh).
[47] Asia/Pacific Group on Money Laundering (APG), *Anti-money Laundering and Counter-Terrorist Financing Measures—Bangladesh: Mutual Evaluation Report* (APG 2016).

laundering is linked to terrorism or involves other countries. The Money Laundering Prevention Rules 2019 also offer a way to follow the legal rules.

The creation of the Bangladesh Financial Intelligence Unit has made the countries response stronger. BFIU has a role in getting looking at and sharing information about financial activity that looks suspicious and other financial info. Companies, especially banks must find and report anything that looks strange under the rules. These steps are important because financial clues can be the sign of activity that needs more checking.. Getting reports is just the start. The information must be looked at properly. Turned into useful data that helps with the investigation and legal action.

One of the results of this study is that Bangladesh still has a gap between having laws and using them properly. Money laundering investigations are often more difficult than criminal investigations because the money might go through many accounts, companies, people or places before it ends up where its going. Investigators need to not find that something strange happened, but also how the money was made, where it went, who controlled it and how it was used in the end.

This needs a lot of skill. People who handle money laundering cases need to know about banking, accounting, company structures, who really owns the money, digital money systems and tracking assets. Prosecutors also need to be able to understand money evidence and explain it well in court. Without trained people even if the laws are there the investigation might not be complete. The APG Mutual Evaluation of Bangladesh found that the country has made progress in building its AML/CFT system but also found that the way it works still has problems.

Another important problem is how the different groups involved in fighting money laundering work. BFIU, Bangladesh Bank, the Anti-Corruption Commission, police, customs, tax authorities, prosecutors and the courts can all be involved in parts of a case. Their jobs are different. They are connected. If the information is not shared quickly an investigation might lose time. Chances to find or keep the money from crime. More teamwork is not an administrative issue; it is a big part of making sure financial crime is stopped effectively.

The study also found that more focus should be put on tracking, freezing, taking and getting back money from crime. The main goal of money laundering is to let criminals enjoy the money from actions while hiding where it came from. So the success of the system should not be about how many cases are started or how many people are found guilty. Getting back the money from crime should also be a sign of how well the system works. If a person is punished but still has a lot of money from actions the reason to do more crime might still be there.

Getting back money is especially hard when the money is moved outside the country. Once the bad money leaves Bangladesh local officials might need help from countries to find the accounts, property, companies or other things connected to the crime. This makes working with countries an essential part of Bangladesh's anti-money laundering plans. Helping each other sharing info sending people back and working together to find and get back the money can be very important in dealing with the global nature of money laundering.

Technology is another big problem and also a chance. More people use banking, phone money services, electronic transfers and other digital ways to do money stuff. These can be used to move money and create complicated trails. At the time tech tools can help officials find strange patterns look at a lot of money data and find things that look strange. Bangladesh should focus not on managing the risks from tech but also on building the skills needed to use tech as a way to catch crime.

The study also shows how important it is to follow AML/CFT rules while making them fit Bangladesh's own legal and organizational situation. The Financial Action Task Force Recommendations give the international way to stop money laundering, terrorism financing and related risks. Bangladesh's work with the Asia/Pacific Group on Money Laundering and its ongoing work with international checks shows how important it is to have a good system that fits with the world.. Following the rules should not just be a formality. The end goal should be to make improvements in stopping looking into and taking action against financial crime.

Based on the results of this research Bangladesh should focus more on making experts for investigations. Investigators, prosecutors and others should get training in accounting looking at money, digital transactions, who owns the money finding assets and new ways of doing financial crime. This training should not be a one-time thing because the ways of doing crime change as tech and the money world change.

More teamwork between the groups involved should also be built. A better way to share money and investigation information could cut down delays. Make investigations better. Working together on cases and talking more between the people who look at money clues the investigators and the prosecutors may help make sure that anything strange is followed up with the steps. At the time sharing info should follow clear rules so that privacy, fairness and proper steps are protected.

More attention should also be given to getting money right from the start of an investigation. Of waiting until the end of a legal case investigators should look at the money situation and assets of the people involved as early as they can. If the law allows steps should be taken to stop the money from being moved, hidden or lost during the investigation and trial. Focusing more on getting back money would reduce the money from crime. Make the law more effective as a warning.

Bangladesh should also keep improving its ability to deal with tech-based money laundering. This means spending on checks looking at data keeping money safe and getting the right people.. The rules should be fair and focused on the real risks. Many rules can cause problems for real businesses and people who use money services. The FATF has said that it's important to use an risk-based way and to think about including more people when putting in place money rules.

The court process also needs more attention. Money laundering cases can have a lot of documents, company papers and digital evidence making them more complex than many other criminal cases. Many delays can make it harder to take action and make getting back money harder. Training for judges and prosecutors, in crime could help them understand and handle these cases better..

Efficiency should never come at the cost of fairness. The rights of people accused, proper steps and the basic rules of justice should always be protected.

The overall results of this study show that Bangladesh has already created many of the parts needed for a good anti-money laundering system. The Money Laundering Prevention Act 2012 is the law that supports this. Also the BFIU and other groups help stop find and look into crime. Bangladesh has also worked to follow international AML/CFT rules. These steps show that the country sees money laundering as a legal and economic issue.

Even if there is a strong legal system it does not mean that it will work well in practice. The ongoing problems with investigation working together between different groups finding assets using technology getting people to court and working with other countries show that putting the laws into action is the main problem. The difference between following the rules and actually making things work is very important here. Bangladesh may have rules that meet official needs but the real challenge is to make sure these rules lead to real results in real cases.

The fight against money laundering should be seen as a never-ending process, not something that can be done by passing one law. Criminals change their ways the financial system changes and technology offers ways to move and hide money. So the legal and the institutional response must stay flexible. Be able to change with new risks. Regular checking of the laws building of the institutions and better work between local and global groups will be needed to keep the AML system working well.

In summary Bangladesh has made progress in creating a legal and institutional system to fight money laundering but there are still big problems in making that system work in practice. The country does not really need laws just to have more laws. What it needs most is use of the laws that are already in place better trained people who look into crimes and those who take people to court better teamwork between groups, better ways to get back stolen money more use of technology and better help from other countries. At the time all the actions taken must follow the rules of fairness and the law.

In the end the success of Bangladesh's efforts to fight money laundering should not be judged by how many laws there are how many groups there are or how many cases there are. It should be judged by whether illegal money can be found and followed whether stolen money can be gotten whether people who did wrong can be caught and punished in a reasonable time and whether the financial system can be protected from being used for bad reasons. If Bangladesh can make the gap between the rules it has and the way they are used smaller it will be in a much better place to make financial crime less profitable protect the health of the economy and make people believe more in the justice system. The path ahead is not about making more rules but, about making the current legal and institutional system better more connected more able to use technology and more ready to deal with the changing ways that money laundering happens.

Bibliography

A. Legislation

- Anti-Corruption Commission Act 2004 (Act No V of 2004).
- Anti-Terrorism Act 2009 (Act No XIV of 2009).
- Code of Criminal Procedure 1898 (Bangladesh), Act V of 1898.
- Customs Act 1969.
- Extradition Act 1974.
- Money Laundering Prevention Act 2012 (Act No V of 2012).
- Money Laundering Prevention Rules 2019.
- Mutual Legal Assistance in Criminal Matters Act 2012 (Act No IV of 2012).
- Penal Code 1860.

B. Bangladesh Government and Institutional Materials

- Bangladesh Bank, *Guidance Notes on Prevention of Money Laundering and Terrorist Financing*.
- Bangladesh Financial Intelligence Unit (BFIU), *Annual Report 2023–2024* (BFIU 2024).
- Bangladesh Financial Intelligence Unit (BFIU), *Annual Report 2024–2025* (BFIU 2025).
- Bangladesh Financial Intelligence Unit (BFIU), 'BFIU at a Glance'.
- Bangladesh Financial Intelligence Unit (BFIU), 'Circulars and Guidelines'.
- Bangladesh Financial Intelligence Unit (BFIU), 'Circulars and Instructions'.
- Bangladesh Financial Intelligence Unit, 'Frequently Asked Questions' (BFIU).
- Bangladesh Financial Intelligence Unit, 'What is the legal framework to combat money laundering and terrorist financing in Bangladesh?'
- Bangladesh Financial Intelligence Unit, *Money Laundering Prevention Act 2012 (2015 Incorporated)*.

C. International and Institutional Materials

- Asia/Pacific Group on Money Laundering (APG), *Anti-money Laundering and Counter-Terrorist Financing Measures—Bangladesh: Mutual Evaluation Report* (APG 2016).

- Asia/Pacific Group on Money Laundering (APG), *Anti-money Laundering and Counter-terrorist Financing Measures: Bangladesh Mutual Evaluation Report* (APG 2016).

- APG, *Follow-Up Report to Bangladesh's Assessment of Anti-Money Laundering and Counter-Terrorist Financing Measures* (2019).

- APG, *Follow-Up Report to Bangladesh's Assessment of Anti-Money Laundering and Counter-Terrorist Financing Measures* (2020).

- Asia/Pacific Group on Money Laundering (APG), *Bangladesh: 3rd Follow-Up Report* (2019).

- Financial Action Task Force (FATF), *The FATF Recommendations: International Standards on Combating Money Laundering and the Financing of Terrorism & Proliferation* (FATF 2023).

- Financial Action Task Force (FATF), *The FATF Recommendations* (updated June 2026).

- Financial Action Task Force (FATF), *Updated Guidance for a Risk-Based Approach to Virtual Assets and Virtual Asset Service Providers* (FATF 2021).

- Financial Action Task Force (FATF), *Seventh Targeted Update on Implementation of the FATF Standards on Virtual Assets/VASPs* (FATF 2026).

- Financial Action Task Force (FATF), *Money Laundering National Risk Assessment Toolkit* (FATF).

- Financial Action Task Force (FATF), *Asset Recovery Guidance and Best Practices* (FATF 2025).

- FATF, *Recovering International Proceeds of Crime through Inter-Agency Networks* (16 November 2023).

- FATF, 'Amendments to the FATF Standards to Strengthen Global Asset Recovery' (16 November 2023).

- FATF, *Guidance for a Risk-Based Approach: Effective Supervision and Enforcement by AML/CFT Supervisors of the Financial Sector and Law Enforcement* (FATF).

- FATF, *Methodology for Assessing Technical Compliance with the FATF Recommendations and the Effectiveness of AML/CFT Systems* (FATF).

- United Nations Office on Drugs and Crime (UNODC), *Reference Guide to Anti-Money Laundering and Combating the Financing of Terrorism* (UNODC).

- United Nations Office on Drugs and Crime (UNODC), *United Nations Convention against Corruption: Technical Guide* (UNODC 2009).

- World Bank, *Ill-Gotten Money and the Economy: Experiences from Malawi and Namibia* (World Bank 2011).

D. Other Materials

- United Nations Office on Drugs and Crime, materials on money laundering, proceeds of crime and international measures against financial crime.

E. Online Sources

- Bangladesh Financial Intelligence Unit, official website. BFIU Official Website

- Financial Action Task Force, 'FATF Recommendations'. FATF Recommendations

- Financial Action Task Force, 'Bangladesh – Mutual Evaluation'. Bangladesh Mutual Evaluation

- FATF, 'The FATF Recommendations' (updated June 2026).

- FATF, 'FATF Recommendations' (overview and implementation framework).

- FATF, 'FATF Releases Detailed Guidance to Help Practitioners Recover Criminal Assets' (4 November 2025).

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Press.